

WEEK 6 · (DIS)POSSESSION

CLASS 2

Possession, Race, and Colonialism

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Property

K-Sue Park

While the English word *property* still retains the meaning of a quality or trait belonging to a thing from its Old French derivation, its now more dominant use to signify a thing “owned” or a “possession” appears to have been rare before the seventeenth century. During that century, when the English colonization project came into full bloom, the Anglo adaptation of this term made this second usage common. At the same time, the parameters of things that could be owned under English law expanded dramatically, and what it meant to “own” or “possess” them underwent a sea change in the colonies. More specifically, as the English entered into and became dominant in the Atlantic slave trade, the “things” that could be property within that legal tradition extended to include human beings, and where owning land had long primarily meant one had the rights to its *use* value, it increasingly meant the right to access monetary value through it, especially by pledging it as security for debts. These evolutions in the Anglo-American understanding of “property” occurred over and against the freedom and dignity of African and Indigenous people and relationships to lands as places and homes (see Goeman 2008). In other words, the production of these qualitatively new forms of “property” depended on dispossession, or extreme violence enacted on the basis of racial hierarchies (see Bhandar 2018; Nichols 2020). By normalizing this violence through the capture and subjugation of African people and the theft of Native Nations’ lands, colonists created a thoroughly racialized and sexually

disciplined social order, within which property continues to circulate.

The material and conceptual limits of the term *property* are partly defined by law and change with the law. In the Anglo-American tradition, the law has largely, though not exclusively, constructed property rights as a “bundle”—a panoply of different entitlements or private interests in property, whose trade produces the market itself. Given these conditions, critical analyses of property, especially those that focus on private property and the state, should attend to history—and in particular, the ways that the legal construction of property transformed in the English colonies. Private property in the colonies developed in ways radically different from private property in England because of the dramatically different public law interventions and frameworks that shaped its development. This entry focuses on two of the most significant legal frameworks that shaped the character and dynamics of “property” in the colonies and later in the United States and thus the dominant paradigm for property around the globe. These frameworks are (1) the racial mandate of the Doctrine of Discovery, which authorized both conquest and enslavement as means of producing property, and (2) the system of incentives that promised settlers Native Nations’ land in return for their occupation, which deputized heteronormative nuclear families to perform the labor of conquest and thereby further the interests of the state.

The Doctrine of Discovery and its interpretation in the English colonies help explain how the development of “property” in the Americas produced a society riven by racial distinctions and driven by the willingness of self-interested heteronormative family units to engage in profitable forms of violence. The Doctrine of Discovery is a public international law doctrine of war that authorized and ordered conquest and enslavement on

the basis of distinctions between tiers of humanity that were characterized as religious, cultural, civilizational, and racial. On the basis of different canon law justifications formulated during the Crusades, in 1452, Pope Nicholas V issued the papal bull *Dum Diversas*, which directed King Afonso V of Portugal to “capture, vanquish, and subdue the saracens, pagans, and other enemies of Christ”; to “put them into perpetual slavery”; and “to take all their possessions and property.” He followed with the bull *Romanus Pontifex* in 1455, which explicitly extended dominion over nonwestern peoples’ lands to the Catholic nations of Europe (Nicholas V 2017). Subsequent bulls developed the Doctrine of Discovery not only to authorize the seizure of people and land in Africa and the Americas but to rank the entitlement of European nations to do so, beginning with Portugal and Spain. Over the following centuries, the Dutch Republic, France, and England, under the auspices of self-issued charters and grants, further adapted the Doctrine of Discovery to enter into this European competition to conquer non-European nations’ lands.

The racial violence authorized by the Doctrine of Discovery produced the two forms of property that would encompass the vast majority of assets and wealth in the mainland English colonies by the time of the Revolutionary War: land and enslaved persons. The Virginia Company’s first charter from the Crown in 1606—which expressed the hope that the colonists would “in time bring the Infidels and Savages, living in those Parts, to human Civility, and to a settled and quiet Government” (Avalon Project, n.d.)—“granted” the homelands of the Powhatan Confederacy, the Monacan, the Cherokee, the Wampanoag, and others to two groups of English investors. The first enslaved people brought to the colony of Virginia in 1619 were captured in Angola by the Portuguese, acting under the Doctrine of Discovery as well. In 1662, the colony passed a law

establishing that enslaved status would follow “the condition of the mother” (Thorpe 1909), contravening the English common law rule that status should follow the condition of the father. This rule of *partus sequitur ventrem* spread across the colonies to tie bondage to birth and race (J. Morgan 2018); antimiscegenation laws aimed at preserving racial purity reinforced this division of status so that Black women’s reproductive as well as agricultural labor became key to the production of property under this legal regime (J. Morgan 2004). The racial violence deployed to dispossess Native Nations of land and Africans of their freedom produced a new kind of value in this property that was dependent on race—that is, land did not have monetary value on the colonial market unless white people occupied it at the time of its sale or projected in the future; human beings did not become property except because of being Black. The fact that these forms of property depended on the subordination of nonwhites for their creation and their value meant that their production deeply racialized colonial society and its political economy.

Further, European nations had wide discretion under the broad mandate of the Doctrine of Discovery to experiment with strategies for taking actual possession of Native Nations’ lands. In North America, English colonial companies and governments uniquely relied on nuclear families, a kinship formation that colonists imported from England, to settle lands in order to formalize their claims. More specifically, they incentivized settler families to occupy lands with the promise of granting them ownership of those lands. They deputized private individuals to perform racial violence, enforce racial distinctions, and maintain value in the “property” they thereby produced. The perception of abundant available lands, in an era when lands meant wealth and could promise subsistence for a family, lured floods of immigrants to the American frontier, where

they engaged in direct combat with the inhabitants of the land, destroyed the environments upon which Native people depended for subsistence, purchased enslaved people in a bid to build their wealth, and reproduced their own forces. Nuclear families moved to the frontier to spread disease, chase away the game, and use force to defend the plots of land on which they built homesteads against the claims of Native Nations.

As a result, marriage was key to “the potential military strength of any American border settlement” and “the capacity of the frontier for war,” as frontier historian Frederic Paxson notes, because “in nearly every case the unit working on the frontier was a young married couple” (1924, 37). Again, colonial laws profoundly shaped the ways heteronormative families who were or would be racialized as white helped construct property, not only by promising them title to land in exchange for occupying it for a period of years through headright policies, land grants, and subsidies, but also by encouraging marriages in settlements. During the early years, few women traveled to North America from England, but colonists soon decided that “commercial profits and economic development required stabilized communities rather than rapid exploitation”; trading companies therefore began “to bring women to America to stimulate the formation of families” (Abramovitz 1988, 45). Trading companies aimed to induce farmers to invest in their homesteads rather than returning to Europe and offered incentives in the form of additional land or servants to men who brought wives or married. In 1619, for example, the Virginia House of Burgesses allotted husbands an equal land share for their wives; between 1620 and 1622, in an effort to “make the men there more settled and less moveable,” the Virginia Company of London sent 140 women to the colony to increase “the supply of free white women.” Pennsylvania and Massachusetts both offered land to women themselves,

but Massachusetts prohibited unmarried adults from living outside family units or established households, and Maryland in 1634 threatened to repossess land from women who did not marry within seven years. Laws such as these *made* marriage the “lynchpin” of the colonial social order and the “centerpiece” of its economic system (Abramovitz 1988, 53; Kessler-Harris 1982, 4).

The importance of nuclear families in constituting the labor force of conquest cannot be overstated. Neither English troops nor the “tiny” US Army, before the Civil War, had the funds or personnel to carry out the direct seizure of Native Nations’ lands. The greater the numbers of colonists, the more politically and economically valuable land could be settled and held by their collective forces. Colonial governments and companies prioritized the recruitment of immigrants for this reason, making migration policy—governing incentives for white immigration, forced importation of Black people, and Native removal—a fundamental dimension of colonization. After immigrating, white women’s reproductive labor also played a key role in building colonists’ capacity for force: by 1700, “natural increase” had become “the key factor in white population growth” (Perkins 1980, 1–2); Benjamin Franklin cited early marriage and large families as the chief explanations for American growth and estimated that the typical number of children per family doubled that in England and in the rest of Europe. Colonial laws of marriage, inheritance, and paternity cultivated women’s dependence, and nuclear families in colonial communities were governed by a patriarch who controlled the reproductive and domestic labor of women and children. Women performed unpaid household work, such as tending livestock, household production for family consumption, and market sales, and legally had to surrender any income they earned to the male head of household;

children’s labor was property that could be sold to others for a price.

The colonial political economy in the United States therefore drew upon a division of labor between the public and the private on both the state and familial levels: the private economy of the family powered the public agenda of conquest; laws that sought to harness the self-interest of white family units deputized them as an informal colonial militia. This role of the nuclear family in *creating* property both furthered state-engineered expansion and created peculiarly personal stakes in the project of empire. The land settler families conquered was a long series of homestead plats—the quintessential “property” of the American Dream—whose defense inevitably meant *domestic* defense to their armed owners. The racial construction of property historically invested whites and those who sought to attain whiteness in acts of racial violence that produced wealth—extracting lands and the reproductive and agricultural labor of enslaved people. It invested them in the project of maintaining the colonial racial social order as a part of the preservation of the property they helped create and, therefore, as Cheryl Harris (1993) has elaborated, in their own whiteness as a specific form of property itself. Thus, settler families acted in tandem with colonial governments and then the United States to produce a highly specific political economy founded on the private construction of “property” through racial violence, while their rapid accumulation of lands and enslaved people accelerated the expansion of those markets and general assault on Native and Black lives and lifeworlds at once.

The Residential Is Racial: A Perceptual History of Mass Homeownership | Brown

Week 6, Class 2

The Racial History of the Propertied Subject of Feeling (from the Introduction) — pp. 6–14

Brown, Adrienne R. 2024. "The Racial History of the Propertied Subject of Feeling." Pp. 6–14 in *The Residential Is Racial: A Perceptual History of Mass Homeownership*. Post45. Stanford University Press.

6 Introduction**The Racial History of the Propertied Subject of Feeling**

Mass homeownership in the twentieth century belongs to the history of property more broadly. And as with property at large, mass homeownership not only shaped racial outcomes, but helped to remake race itself as a concept and category. Mass homeownership could be said to qualify as a racial project, defined by Michael Omi and Howard Winant as “an effort to reorganize and redistribute resources along particular racial lines.”⁷ Yet, because property has also helped to produce and give value to the category of race, it seems most apt to consider race and property as mutually constitutive projects: property functions a racial project even as race is also always being produced in and through property. Or, as Brenna Bhandar puts it, “racial subjects and modern

property laws are produced through one another.”⁸ Theories of property, in other words, did not merely develop in reaction to race but shaped how race was itself theorized, defined, and perceived. Modes of feeling, moreover, played an outside role in how the co-formations of race and property evolved. To position mass homeownership in relation to the ongoing mutual constitution of property and race, some background on the history of this co-formation and the centrality of feeling to its operation is in order.

The definition of property has been contested and continually retheorized since its invention.⁹ In describing the complex that is property, contemporary legal theory has most regularly conceptualized it as a “bundle of sticks,” an image conjuring property’s status as “not a single unitary thing but rather a group of rights, some of which may be added or removed under appropriate conditions.”¹⁰ This constellation of property, moreover, has long anchored theorizations of states, societies, and individuals. As Athena Athanasiou notes, ownership sits squarely “at the heart of the onto-epistemologies of subject formation” in the West. Within this tradition, Athanasiou continues, “being and having are constituted as ontologically imbricated with each other: being is defined as having; having is constructed as an essential prerequisite of proper human being.”¹¹ In England, private property began to garner new and specific legal definition in the seventeenth century and its rights and rules proved pivotal to the Enlightenment philosophy that followed. From John Locke’s definition of property as including one’s own body and freedom—“every man has a property in his own person”—and his belief that the right to property preexists and supersedes politics itself, to Adam Smith’s insistence on the superiority of societies organized around property’s protection, the idea that political institutions should fundamentally center the rights of property owners was, and is, the cornerstone of liberalism.¹²

Rationales of property’s sanctity drew heavily from speculations that the desire to own was not learned but innate. While David Hume, like Thomas Hobbes before him, argued that the desire for property was a convention and a product of utility rather than a natural predilection, the most impactful Enlightenment theories of properties naturalized its allure.¹³ For Adam Smith, the moral justification for property derived from the notion that people inherently experience feelings of loss when deprived of something they believed they possessed. In his outline of the most sacred laws of justice, laws that

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“guard his property and possessions” follow only after prohibitions against murder in importance.¹⁴ Jurist William Blackstone would linger even longer on property sentiment in his influential *Commentaries on the Laws of England* in 1765: “There is nothing which so generally strikes the imaginations and engages the affections of mankind as the right to property; or that sole and despotic dominion which one man claims and exercises over the external things of the world, in total exclusion of the right of any other individual in the universe.”¹⁵ Like Adam Smith, Blackstone approached property as a natural driver of desire, linking the power of land to the power of dominion writ large.

Debates over property’s nature, definition, and function took shape at the same as expansions of settler colonialism and the transatlantic slave trade. As Brenna Bhandar captures in her description of ownership as a racial regime, “there cannot be a history of private property law as the subject of legal studies and political theory in early modern England that is not at the same time a history of land appropriation.”¹⁶ “The evolution of modern property laws and justifications for private property ownership,” she notes, “were articulated through the attribution of value to the lives of those defined as having the capacity, will, and technology to appropriate, which in turn was contingent on prevailing concepts of race and racial difference.”¹⁷ Early modern theories about private property as a capacity made it possible for English settlers to conceive of indigenous populations as occupants rather than owners of the land and to render black bodies as property to be dispossessed from their lands, repossessed and exchanged.

The difference between race and indigeneity has most centrally hinged on the distinction between an identity rooted in the body versus one forged from place; or focusing more specifically about the distinction between black and indigenous identities, as resulting from discrete, if always intersecting, processes of enslavement and genocidal dispossession. Such a schema has also dictated how the divergent political agendas of these groups have been glossed, with representation and inclusion being most often attributed to the struggles of racial minorities while demands for sovereignty and decolonization anchor indigenous concerns. But for all their differences, race and indigeneity prove porous categories.¹⁸ Enlightenment efforts to codify the characteristics of non-Europeans used their alleged disinterest in or incapacity for property to rationalize their subjugation, be it through enslavement, exploitation, or

dispossession. When the capacity for property is treated as a defining trait of a people and used to determine that people's aptitude for sovereignty over either their own bodies or their land, it is a tool of racialization.¹⁹ This is not to collapse the distinctions between race and indigeneity in all contexts, especially since both are not only produced in relation to property but also continually remake definitions of property and determinations of its value. But it is to insist upon the flexibility of property as a tool, used by white settlers to variously create and enforce categories of race and indigeneity depending on which concept best served their interests at a given time. Claiming property feeling as a tool of racialization captures the manifold ways settlers used theories of property to justify the subjugation of others, at times racializing indigenous and other non-white populations alike as similarly unfit for property while creating treaties and laws justifying indigenous dispossession in terms best understood through the lens of sovereignty and colonization.²⁰

John Locke's labor theory of property was perhaps most influential as a rationale for subjugation. Locke's notion that "as much land as a man tills, plants, improves, cultivates, and can use the product of, so much is his property" incentivized European settlers to the Americas to view the land as unimproved and, thus, open to be claimed.²¹ As governor of Massachusetts James Sullivan wrote in 1801, "as property is defined by Mr. Locke, and other great men, there may be a question, how far the savages had acquired one in the soil of this wilderness." For Sullivan, the "precarious and transient occupancy" of Indians did not equate to ownership.²² By the early nineteenth century, the idea that Indians only had a right of occupancy and not full ownership of the land dominated settler ideology. Fueling this belief was the faulty assumption that Indians were disinterested farmers who had failed to enclose the land for private use, rendering them inherently incapable of improving the land in Lockean terms. Such justifications undergirded settler imaginaries and legal arguments rationalizing the treaties and wars dispossessing Indians of the land. While some European settlers in the U.S. believed Indians lacked a natural capacity for ownership, others in the nineteenth century insisted that a love for private property was what would ultimately save the Indian by bringing the untethered "savage" into a vision of "civilization" synonymous with the rule of private property. As President James Madison insisted in 1816, "divided and individual ownership" would be "the true foundation

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for a transit from the habits of the savage to the arts and comforts of social life.”²³ Within this “white possessive logic,” to cite Aileen Moreton-Robinson, property was framed as both an inherent capacity fueled by a natural drive to possess as well as a learned convention that could transform one’s capacities and desires.²⁴ Belief in the civilizing power of private property would culminate in the Dawes Act of 1887, legislating the parceling up of tribal lands into individual private plots that ultimately led to further catastrophic loss of land for Native peoples in the U.S.

Justifications for and against slavery also mobilized arguments about property rights. Here, Locke’s theory of self-property—that “every man has a Property in his own Person” that “no Body has any Right to but himself”—often took center stage.²⁵ Abolitionists cited Locke to argue for slavery’s unnaturalness, with Frederick Douglass most prominently invoking the philosopher to insist “every man is the original, natural, rightful, and absolute owner of his own body, and he can only part from his self-ownership, by the commission of a crime.”²⁶ Proslavery arguments, by contrast, anchored themselves in the natural right to property claimed as “the first element of civilization,” as Judge William Harper argued in his 1837 defense of slavery.²⁷ Given that “the coercion of Slavery alone is adequate to form man to habits of labor,” Harper insisted, “without it, there can be no accumulation of property, no providence for the future, no tastes for comfort or elegancies, which are the characteristics and essentials of civilization.”²⁸ Echoing proslavery rhetoric more broadly, Harper’s conviction that Negroes were “incapable of European aspirations” in terms of both their civilizational and emotional capacities extended to their alleged lack of feel for property.²⁹ As sociologist George Fitzhugh maintained of whites in 1854, “no people on earth love property more, will go greater lengths, so far as danger is concerned to obtain it, or take better care of it after it is obtained.”³⁰ What distinguished whites from non-whites, Fitzhugh insists, was not any actual possession of property but rather one’s measurable *affection* for it and the will to want to possess—a formulation crucial to ensuring that unpropertied whites could continue to claim what W. E. B. Du Bois would call the “public and psychological wage” of whiteness in the absence of any actual land claims.³¹ It was the thought (and feeling) about property that counted most for the white supremacists doing the counting.

After Emancipation, “the Negro’s capacity as a property gainer and owner” became a focal point for sociologists, economists, politicians, and race

scientists.³² Despite Reconstruction's broken promise to free persons of forty acres and a mule giving them title to land they had "improved" without wages, social scientists in the early twentieth century insisted on measuring African American progress in terms of the quantity of property they had acquired since being free. As one sociologist warned in 1910, "taking into consideration the corresponding conditions of the whites and the improved opportunities for gaining property, the Negro appears to be going backwards."³³ He attributes this failure not to the social and civic conditions continuing his subjugation but as a failure of feeling: "The average Negro seems to be moved by neither by a desire to accumulate property nor to prepare for a day of need."³⁴ Another economic study sought to understand whether the Negro's alleged flagging commitment to property was "attributable to the training and steadying influences of the period of slavery."³⁵ The characteristics ascribed to the Negro as well as most other non-white races in the nineteenth and twentieth centuries—sloth, an inability to save or invest in the future, a lack of self-control, disrespect for others' property, and an overall low standard of living—were used to insist upon their general unfitness to either purchase or maintain property of their own, a claim that bolstered any number of disenfranchisements, from voting and sharecropping to alien land laws prohibiting those of Chinese and Japanese descent from owning property.

While nineteenth-century arguments about property most often centered on landownership and the ability to make the land produce, these arguments were extended to homeownership in the twentieth. As black educator H. T. Kealing woefully lamented of his own people while making the case for Negro education, the Negro "is loath to buy a house, because he has no taste for responsibility nor faith in himself to manage large concerns."³⁶ He is willing to spend "large sums on expensive clothing and luxuries," Kealing continues, "while going without things necessary to a real home."³⁷ While white supremacists argued that blacks had a natural incapacity for managing property, Kealing and others who considered themselves sympathetic to the Negro cause framed their alleged property failings as a matter of culture, capable of correction, rather than as a biological deficiency. Part of the ongoing project of Emancipation, insisted Kealing and others, involved teaching Negroes to become stewards of property rather than objects of it after centuries of enslavement. Because slavery "did not teach him the meaning of home," as Kealing put it, "to do this is the burden of freedom."³⁸ As white supremacist

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economist Albert Stone would insist in his study of the Negro's property failures, the owned home was not merely the foundation of the Negro's prosperity or a marker of racial progress; rather, what most mattered when assessing the Negro's civilizational progress was "the extent to which these houses possess for their owners the true significance of homes."³⁹ It was the Negro's demonstrable feeling for property—not what he owned but his feelings for owning itself—that would most powerfully signal his advancement.

Du Bois would also approach property affect as a racial pathology. But rather than valorizing the drive to own as a marker of a people's capacity for civilization, Du Bois would flip this formulation to insist instead on the tyranny of ownership embedded within whiteness. Describing what Ella Myers terms "whiteness as dominion," Du Bois famously defined whiteness in his 1920 essay "The Souls of White Folk" as "the ownership of the Earth forever and ever, Amen."⁴⁰ Casting this belief as "this new religion of whiteness," Du Bois dwells on ownership's affective and embodied operations.⁴¹ Not only does this credence manifest itself in the "strut," "arrogance," and "whoop" of the faithful, but Du Bois also notes how such property faith also led to the "chilling of generous enthusiasm" for the freedom of others to occupy and govern their lands without white interference.⁴² Du Bois's framing of whiteness as the right to universal ownership sharply diverged from that of his onetime teacher, William James. James's belief in ownership's importance to subject formation led him to prioritize its study within the emergent field of psychology. Like "the blind impulse to watch over our body," as James wrote in 1890, an "equally instinctive impulse drives us to collect property."⁴³ As James insisted, "between what a man calls *me* and what he simply calls *mine* is difficult to draw."⁴⁴ Du Bois denaturalizes what James treats as impulse and racializes what James universalizes. But both agreed that property's absorption into identity was a foundational problem for the study of modern life, even as the methods for studying this relation transitioned from Enlightenment fields of philosophy and political economy to the newer disciplines of sociology and psychology. Whether wielded as a compliment or a critique, an asset or a pathology, the notion of whiteness's privileged relationship to ownership remained alive and well in this period as homeownership came to compete with, and eventually overtake, landownership as the foundational form of property anchoring the American imaginary.

The affective logic of racialized ownership shaped the emerging project of mass homeownership into the twentieth century that was first forwarded by the real estate industry and later embraced by the state. While most studies of residential discrimination focus on the period after the New Deal when the state began to subsidize homeownership for the white masses, I follow historian Paige Glotzer in connecting this story instead to the nineteenth century to bring “the deeper connections between American suburbs, slavery, and colonialism” into view.⁴⁵ As the platonic ideal of the propertied subject transitioned from the landowner to the homeowner in the twentieth century, ideas of racial capacity and feeling continued to undergird this formation. Recovering mass homeownership’s inheritance of centuries’ worth of theories defining whiteness *as* ownership allows us to better limn the stakes of maintaining property’s racial pedigree into the twentieth.⁴⁶ The racial case for homeownership made in real estate trade publications was articulated and resisted in novels, films, and magazines negotiating and reframing the racial logic of homeownership as increasingly synonymous with citizenship, happiness, and security. At some point in the early twentieth century, as David Freund notes, white Americans stopped talking about residential discrimination in terms of personal feeling—as hatred, discomfort, or capacity—and started talking about it more consistently using the seemingly impersonal rubric of value—framing segregation as the protection of one’s financial investment in property rather than as a matter of personal amity. And yet, what is value but the enshrinement of feeling into the collectivity ascribed to the free market? As Keeanga-Yamahtta Taylor puts it, while “people talk about the free market as this racially neutral, color-blind space within which the invisible hand of supply and demand dictates what does and doesn’t happen,” such descriptions conveniently overlook the fact that “the market is us.”⁴⁷ “The American housing market,” she writes, “was an expression of the prevailing racial consciousness of the society in which it operated.”⁴⁸ Older racial theories of property capacity did not dissipate but were transformed and absorbed into the financial truisms about blackness’s devaluing function that residents, realtors, lenders, and state agencies were quick to accept as fact, no matter how distasteful they claimed to find them.

If racial feeling is the cornerstone of property rights, and property rights are the cornerstone of liberalism, the changing strictures of liberalism at

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midcentury transformed and, by extension, further codified the racial dimensions of property in more systemic and depersonalized ways. Of course, many midcentury realtors and landlords still openly described their reticence to lend or sell to blacks using the language of diminished capacity to properly care for property. A survey of white Chicago realtors from 1955 showed that many believed Negro tenants to be noisier, less tidy, and more destructive than white tenants. A common sentiment among these realtors was that the Negro “should develop a sense of concern for property, in particular, other people’s property” before “making demands for acceptance.”⁴⁹ While many realtors in the survey insisted that “the Negro homeowner cares for his home as well as or better than the white homeowners,” others claimed that “the Negro tenant is not as good as the white.”⁵⁰ But as this framework of capacity became more and more unwieldy and impolitic at midcentury, it became easier to embrace the consequences of this centuries-held belief—namely the devaluation of black residents and black neighborhoods—as an inherent economic truth attributable to the free market itself. As the author of a 1963 appraisal manual laments, “despite educational and legal efforts to bring about the acceptance of true democratic doctrines,” the “mixing of residents with diverse historical backgrounds within a neighborhood has immediate and depressing influences on value.”⁵¹ This appraiser presents the free market as an uneducable force to be obeyed, no matter how unjust its mores.

CATAPULT

PEOPLE | FAMILY | ADOPTED

Why We Shouldn't Call Adoptees "Lucky"

If all adoptees felt not only safe, but empowered in their families and their communities, I would feel better—but not lucky.

Tony Hynes Sep 17, 2019



Illustration by Celia Jacobs

Growing up, I remember worrying that someone was going to try to kill my family.

One night, after we went out to eat at a diner in College Park, Maryland, I looked out of the rear window as we drove away, watching to see if any cars were following us. Sometimes the same pair of headlights would appear in my line of sight for miles, taunting me, before sharply making a turn that took their car farther away from ours.

After we got home, I tucked my baseball bat by my bedside—just in case I heard footsteps come up the stairs, just in case someone had finally come for us.

I am the African American adopted child of two white lesbian moms, and when I was a child, I was often afraid for us.

*

I remember a first-grade class field trip in the fall, the smell of tree bark and s'mores by a campground fire. I am relaxing with my friends when I hear a woman's scream. I race past familiar faces, crunching leaves and pine needles under my feet. My eyes, first scanning the trees, the grass, the gravel path, now fix on one spot, where a crowd of a half-dozen people stand in a semicircle. The scream I hear is full-force.

"They're going to take Tony!"

Mary, my mom, is in anguish. Her expression is one I have never seen before, full of fear and desperation. Instantly, her emotions become mine. If she is this afraid, it must be true: I am about to be taken away from my moms. From my home. From my life as I know it.

I am the African American adopted child of two white lesbian moms, and when I was a child, I was often afraid for us.

Another family drives me home that day. The three-and-a-half-hour car ride is one of the longest of my life. The car does not contain enough space to hold my emotions, and when it finally rolls up to our driveway, I nearly fly out of the back seat. In our house, I find

Janet, the mom who always knows the most important details about my life, the mom who is always there to pick me up from school and help me with my homework. She sits in a blue recliner chair in the corner. I tiptoe up to her.

“Sit,” she says, her voice trembling.

“What’s going on?” I ask.

“They’re trying to gain custody of you.”

I was afraid that day, but it would be years before I fully understood that proud racists and homophobic people were not the only people who wished harm on our family. People who were viewed as just, as pillars of our society, often wished for the same. It would be years before I would understand that while a judge’s gavel isn’t the gun I once feared, it can wreak its own brand of havoc.

*

1995: Men in black robes make a declaration. “A white, same-sex-headed household is not the right household to raise a black child in.”

These are the words my mom, Mary, heard repeated to her the day of our field trip. A panel of three judges had overturned my adoption, granting custody to an extended relative of my birth family.

When my initial adoption was granted, my lawyer as well as my social worker told one of my birth relatives that if I was adopted by Mary and Janet, I would never see members of my “real” family again; I would never have any Black friends. They, along with my relative’s own lawyer, told her to appeal the initial adoption in the hopes that it would be overturned—that I would be “saved” from being raised by a white same-sex couple. They did not tell my birth relative that my room was full of books by Black authors, that some of my favorite hats were of Negro League baseball teams. They did not tell her that I had Black friends; that I had read and learned about the Underground Railroad, Harriet Tubman and Frederick Douglass, Malcolm X, and Marcus Garvey. They did not tell her

that I went to a barbershop called EBONY BARBERS. They did not tell her that Mary and Janet knew how important it was for me to see myself reflected in the books I read, in the people we knew, in the community we lived in. They did not tell her that my moms were raising me to be kind, to treat others with respect. They did not tell her that being raised by lesbians does not mean you will grow up to be gay yourself. Maybe they did not know these things; maybe they thought these details did not matter. Maybe they believed that no matter what my moms did, my life would be a tragedy if two gay white women raised me.

But my birth parents were not in a position to take care of me. My birth mom was schizophrenic, and as much as she wanted to, she simply did not have the ability at that time to raise me; to be there for me as I grew up. My birth father did not want to be a part of my life—I had no memories of his face, no letters from him. When asked to come to court to claim custody of me, he declined multiple times.

Knowing this, I wondered why my social worker, the judges, the lawyers were still insisting that Mary and Janet's home was not the right place for me to live. My birth relative had a chance to raise me when I was an infant, and ultimately was not able to do so. It was not her fault—I wasn't the only child in the family she had decided to raise, and she was getting older. Still, I would like to think that when she let me go into the child welfare system, she understood that I needed to grow up in an environment that could provide what she could not in that moment.

A panel of three judges overturned my adoption, granting custody to an extended relative of my birth family.

As a child, I did not have baby pictures like my classmates did. I did not know who my birth grandparents were. I did not yet know I had siblings out there in the world. I did not have a “traditional” childhood, a “normal” childhood, a non-traumatic childhood (few do). But I did have Mary and Janet—two people I viewed as my blood, as my family. I wanted

to stay with them. Being their son, only to have that ripped away like it was nothing, was crushing. It was a nightmare, much like when I learned my birth father did not want me, or when I learned my birth mother was not well enough to take care of me.

My lawyer, my social worker, and the judges who overturned my adoption knew that my birth family's circumstances had not changed. They knew my birth family was likely as incapable of raising me as they were when I was first placed in an orphanage. They were willing to risk me entering a group home or foster home rather than letting me stay in the only home I'd ever known and grow up with Mary and Janet.

The judges' decision made me feel as though I must have been right to stare out of the back window as we drove home. I was right to keep a baseball bat at my bedside. There were people out there who thought ours was an unnatural, lesser family. The judges had not threatened us with physical violence, but by stating that we should never have been a family to begin with, they provided justification and cover for others who might try to harm us.

*

The day the judges' decision was made would be the last time I remembered seeing my moms worry about whether our family would be torn apart. They appealed the decision all the way to the Supreme Court, where it was sent down to the lower court in Washington, DC. It was an arduous process, but one that offered a kind of respite—I could not be removed from my current residence during the appeals process. Our family went on road trips, ate pizza on Friday nights, argued about mundane things. We tried to have a normal life, though nothing about our tenuous situation felt normal, and enjoy our time together.

But then one day, Mary, who had been feeling ill, went to the doctor. A few days later, she and Janet sat me down and told me Mary had colon cancer. It was the beginning of the end of our family's existence as we had known it. Less than four years later, Mary would pass away.

I often overheard her praying she would beat the cancer, remain alive for her son. I could see how afraid my moms were of the possibility of Mary's death, but I never once saw them fearful or struggling to hold back tears when talking about my adoption case—even though I knew the fear of losing our case was their ultimate nightmare, too. That was how much they wanted to protect me, their son, from constantly worrying that our family would be ripped apart.

*

Two years after my adoption was overturned, the trial court finally recommended a joint custody agreement between my birth family and my moms. Neither Mary nor Janet would be considered my parents under the law; instead, they would be my legal guardians. My birth relative was also named one of my legal guardians. An unofficial agreement was made between the families, stipulating that I would visit my birth relative's house on occasion, but I would continue living with Mary and Janet.

I do not remember hearing any of this at the time. Janet has told me I wasn't informed back then because the new decision "didn't change your life." I think Mary and Janet must have wanted to keep me from thinking and fretting about the custody battle, about the fact that we almost lost each other.

But the decision *did* change my life. It meant that my position within my family was solidified, that my life felt more stable. Adults often make the mistake of thinking children are too young to comprehend nuance. I was able to understand much of my situation, but did not yet have the capacity to articulate what was going through my mind. As more nights piled up with me sleeping in my own bed, I filled in the gaps with facts of my own: My birth family was fine with how things were, and had withdrawn their appeal. The court must have ruled in our favor. Now Mary and Janet were my legal parents. These assurances, even if untrue, gave me what I needed in order to feel safe at the time.

Mary and Janet could not fully celebrate the decision that kept our family intact. Mary had just had her first surgery since her cancer diagnosis. Still, in our house there was a sense of happiness, gratitude, relief. I got to stay in the only place I had ever called home—though I had already learned that to call it my home, to call Mary and Janet my moms, meant hurting others I also loved.

I remember sitting across from a woman with brown skin and almond-shaped eyes. She shifted forward in her chair, and asked the question that would shape the rest of my life.

“Would you rather live with them, or with me?”

“I—I would rather live with them,” I said. I saw tears drift from the corners of her eyes, falling to the carpeted floor. “I still love you, Mom.”

*

I always hear people say how *lucky* adoptees are, how lucky our adoptive families are. I wish they were right.

What would it have meant for me to be “lucky”? Maybe it would have meant that when I got angry with my parents, I would feel just like any other child getting angry with their parents, rather than a Black boy who might be intimidating his white moms. Maybe it would have meant I could talk to my moms about some of the problematic things some Black people had said about our family without having to worry about them chastising the Black community instead of the individuals I mentioned.

Maybe it would have meant I could describe all of these fleeting feelings to my moms, voicing my experiences as a Black person who grew up in a white home, without having to worry about them thinking I loved them less. Maybe it would have meant my eyes would not water every time I thought about telling my birth mother I did not want to live with her. Maybe it would have meant that a white friend would have refrained from saying I wasn’t “really” Black, before looking at me nervously when his white peer repeated the N-word from a rap song. Maybe it would have meant I could bring up the fact that I had two moms to some of my friends and loved ones without them wondering if

I was raised “right,” or without being questioned about my own sexuality. Maybe it would have meant I didn’t grow up feeling the need to explain why my family should not be discriminated against—in the child welfare system, in the workplace, at school.

When we insinuate that an adoptee is lucky, we often invalidate the unique challenges they continue to experience after being adopted, and paint adoptive parents as saviors—when in fact they are simply parents, good and bad and wonderful and flawed as any parent can be. When we point to adoptees as lucky, we may also fail to look for ways to change systems that contribute to the trauma-inducing situations too many children and families experience.

I would feel better if there were more books that featured families like mine. I would feel better if child protective services systems did not investigate and remove children from Black families at a far higher rate than they do from white families. I would feel better if professionals within those systems received more training on how to interact with families from different backgrounds. I would feel better if more families that do *not* look like mine spoke up for families that do—in our schools, courtrooms, adoption agencies, foster homes, and legislative offices. I would feel better if adoptees of all colors, genders, and sexualities felt not only safe, but empowered in their families and their communities. All of this would make me feel *better*—but not lucky.

When we insinuate that an adoptee is lucky, we often invalidate the unique challenges they experience, and paint adoptive parents as saviors.

Seven years old. That is how old I was when I told my birth mom that I wanted to live with Mary and Janet. I would be lying if I said I felt guilty for it, or felt that I made the wrong choice.

But there is often a sadness that comes with making the *right* choice, and I carry this sadness with me every day. Sometimes people ask me if I have any contact with my birth mom today. It’s always awkward, painful, when I tell them “no.” I know she may feel that

I do not want her in my life, that I didn't want her in my life when I was seven, even though this could not be further from the truth. If she reached out to me now, I would tell her that I still love her, and I still want to have a relationship with her. I would love to speak with her and see her smile—people often tell me they love my smile, and I got it from her. My birth mother remains a part of me: the person I try to be every day, the person I hope I will become.

Though my birth mom and I are no longer in touch, I did have the chance to speak with her again, briefly, a few years ago. She told me she was sorry she did not raise me or my sisters; that she wished she could have. Part of me will always wish she could have as well. I think I would have liked growing up with her, with my sisters, if she'd been able to raise us. Before she said that, I had never really imagined all of us together, sitting in the kitchen on a Saturday afternoon, talking and laughing. As wonderful as it sounds, it also seems like a scene from an alternate universe, from a lucky someone else's life.

Source: magazine.catapult.co/people/stories/essay-adopted-why-we-shouldnt-call-adoptees-lucky-tony-hynes

Migranthood: Youth in a New Era of Deportation | Heidbrink

Week 6, Class 2

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Heidbrink, Lauren. 2020. "Introduction (pp. 11–16 only)." "Chapter 2: Widening the Frame (pp. 67–74 only)." "Chapter 3: The Making of a Crisis (pp. 78–82 only)." and "Chapter 4: ¿Quédate y qué? (pp. 101–111 only)." In *Migranthood: Youth in a New Era of Deportation*. Stanford University Press. pp. 11–16; 67–74; 78–82; 101–111.

TABLE 1: Unaccompanied Children Encountered in the U.S., by Fiscal Year (2009–2019)*

<i>Country</i>	FY2009	FY2010	FY2011	FY2012	FY2013	FY2014	FY2015	FY2017	FY2018	FY2019
El Salvador	1,221	1,910	1,394	3,314	5,990	16,404	9,389	9,143	4,949	12,021
Guatemala	1,115	1,517	1,565	3,835	8,068	17,057	13,589	14,827	22,327	30,329
Honduras	968	1,017	974	2,997	6,747	18,244	5,409	7,784	10,913	20,398
Mexico	16,114	13,724	11,768	13,974	17,240	15,634	11,012	8,877	10,136	10,487
Other	—	454	366	361	788	1,292	636	915	1,711	2,785
Total	19,418	18,622	16,067	24,481	38,833	68,631	40,035	41,546	50,036	76,020

* <https://www.cbp.gov/newsroom/stats/usbp-sw-border-apprehensions>

TABLE 2: Individuals in Family Units Encountered in the U.S. by Fiscal Year (2013–2019)*

<i>Country</i>	FY2012	FY2013	FY2014	FY2015	FY2016	FY2017	FY2018	FY2019
El Salvador	636	1,883	14,883	10,872	27,114	24,122	13,669	58,897
Guatemala	340	996	12,006	12,813	23,067	24,657	50,401	185,233
Honduras	513	3,902	34,495	10,671	20,226	22,366	39,439	188,416
Mexico	8,844	7,356	5,639	4,276	3,481	2,217	2,261	6,004
Other	—	919	1,711	1,421	3,969	2,397	1,142	35,132
Total	10,333	15,056	68,684	40,053	77,857	75,802	107,212	473,682

* <https://www.cbp.gov/sites/default/files/assets/documents/2019-Mar/bp-total-monthly-family-units-sector-fy13-fy18.pdf> and <https://www.cbp.gov/newsroom/stats/usbp-sw-border-apprehensions>

total number of children apprehended in the United States and Mexico in 2018 surpasses 2014 “crisis” levels. With the Trump administration’s 2019 efforts to repeal specialized protections for unaccompanied minors under the 1996 Flores Settlement Agreement and the 2008 bipartisan legislation of the TVPRA, the number of deported children will continue to rise.²⁸

This is not the first time the United States has enlisted mass deportation as state policy. The first deportation law was enacted in the Alien Act of 1798, which allowed for the removal of any undocumented person who was determined to be “dangerous.” The 1882 Chinese Exclusion Act suspended the immigration of Chinese laborers for ten years and prohibited the naturalization of Chinese in the United States, among other restrictive measures. The 1892 Act to Prohibit the Coming of Chinese Persons into the United States, also known as the Geary Act, required Chinese immigrants to register with federal authorities and secure a certificate of their right to be in the United States or face imprisonment and deportation. In effect, the Geary Act invented the first national system of mass deportation.

Historian Kelly Lytle Hernández traces how Operation Wetback of 1954 subsequently resulted in the mass deportation of nearly 300,000 Mexican nationals. In contrast to popular claims that this was the single largest deportation campaign in U.S. history, Lytle Hernandez contends that Operation Wetback was actually an attempt to crack down on agricultural employers who sought to resist the Bracero Program, a bilateral agreement between the United States and Mexico that from 1942 to 1964 allowed for nearly 4.6 million Mexicans to work on short-term contracts. Employers resisted, preferring unregulated and inexpensive labor over the labor protections and minimum wage stipulated by the program. In South Texas, ranchers and farmers took up arms against the Border Patrol when it came to apprehend undocumented workers. In its crack-down on employers rather than migrants, the Border Patrol undertook raids of farms, restaurants, and Mexican communities in an effort to pressure ranchers and farmers into compliance. By the summer of 1954, the Border Patrol and South Texas employers entered into an agreement to lessen the number of immigration raids in exchange for watered-down protections for workers. Thus, when the Trump administration bans individuals on the basis of nationality, conducts large-scale raids, detains immigrants in tent camps, bypasses international refugee protections, and threatens to deport immigrants en masse,

TABLE 3: Children Returned from Mexico, by Calendar Year (2012–2018)*

<i>Country</i>	2012	2013	2014	2015	2016	2017	2018
El Salvador	1,280	1,703	4,885	7,838	9,759	2,622	2,503
Guatemala	2,393	3,012	7,973	19,437	16,715	9,258	12,191
Honduras	2,169	3,686	9,661	10,165	11,464	5,411	10,994
United States	60	37	153	239	167	254	95
Other	64	139	424	835	2,009	521	182
Total	5,966	8,577	23,096	38,514	40,114	18,066	25,965

* http://portales.segob.gob.mx/es/PoliticaMigratoria/Boletines_Estadisticos. Extranjeros presentados y devueltos: 3.2.8 (Eventos de retorno asistido de menores según continente, país de nacionalidad, grupos de edad, condición de viaje y sexo).

TABLE 4: Individuals Returned from Mexico, by Calendar Year (2012–2018)*

<i>Country</i>	2012	2013	2014	2015	2016	2017	2018
El Salvador	12,725	14,586	19,800	34,716	33,384	12,074	12,003
Guatemala	35,137	30,231	42,808	82,597	62,299	36,337	44,254
Honduras	29,166	33,079	41,661	57,823	53,857	31,249	51,562
United States	667	722	953	2,282	132	2,281	1618
Other	1,948	2,284	2,592	3,745	10,200	11,905	2,880
Total	79,643	80,902	107,814	181,163	159,872	93,846	112,317

* http://portales.segob.gob.mx/es/PoliticaMigratoria/Boletines_Estadisticos. Extranjeros presentados y devueltos: Table 3.2.2 (Eventos de extranjeros devueltos por la autoridad migratoria mexicana, según grupos de edad, sexo y condición de viaje).

it is building upon a robust architecture of immigration enforcement that is, according to Lytle Hernández, “one of the least constitutional and most racist realms of governance in U.S. law and life.”²⁹ To date, analysis of this institutionalized racism, however, has largely overlooked discussions of indigeneity.

Although the countries of El Salvador, Guatemala, and Honduras are often homogenized, the levels of migration and deportation of children are not experienced uniformly across the region nor within individual countries. As borne out in the abovementioned statistics, Guatemalan minors are consistently the largest group of young people entering Mexico and the United States; they are also disproportionately deported in comparison to their Honduran and Salvadoran counterparts.³⁰ Over the last decade, the number of Guatemalan children deported from the United States and Mexico has increased ninefold. Racialized as Latinxs in the United States and homogenized by policymakers, the Indigenous identity of Guatemalan youth remains largely obscured in discussions of Central American migration.

According to Guatemala’s Secretaría de Bienestar Social (SBS, Secretariat of Social Welfare), 95 percent of returned minors aged birth to seventeen years old are Indigenous—primarily Mam and K’iche’ children from rural communities in the departments of Quetzaltenango, San Marcos, Quiché, Huehuetenango, and Totonicapán.³¹ By 2017, 66 percent of children deported to Guatemala were boys and nearly 34 percent were girls, a considerable shift in gender composition from four years prior, when just 18 percent of deported children were female. A Freedom of Information Act to CBP regarding the communities of origin of unaccompanied children over the decade 2007–2017 reveals that Guatemalan migrant minors originate from primarily Indigenous communities in the highlands and along the Mexican-Guatemalan borderlands, where historically there are shared Indigenous identities with the Maya in Southern Mexico. (See Figure 1 and Appendix 1.) Internal reports from SBS shared with me indicate that over 86 percent of deported children designate that poverty and the search for employment are the primary reasons for unaccompanied migration, while an additional 12 percent seek family reunification in the United States and 2 percent pursue travel or work in Mexico.³² As young people I spoke with confirm, poverty rates and pursuit of employment mask far more complex understandings of the reasons for migration among Indigenous communities.

INTRODUCTION

15

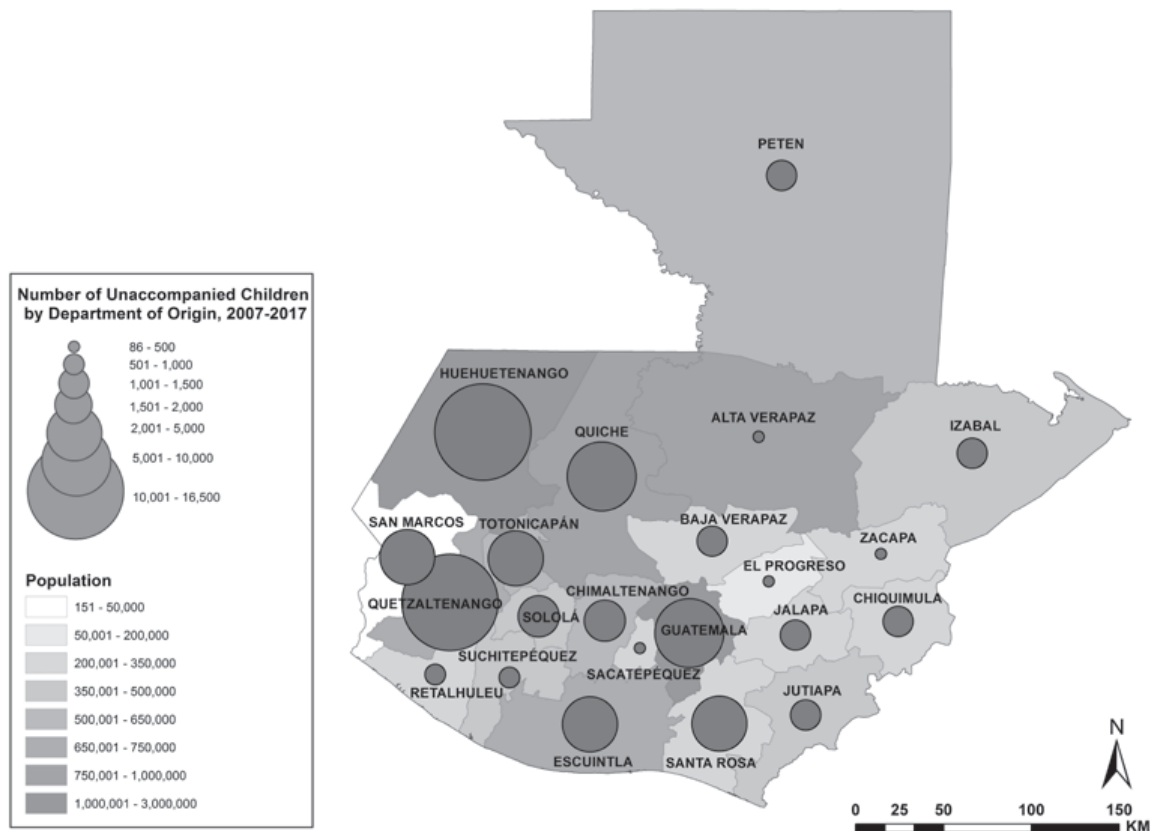


FIGURE 1. Unaccompanied Children Encountered in the U.S. by Guatemalan Department of Origin, by Fiscal Year (2007–2017)

For the Maya of present-day Guatemala, migration is a survival strategy rooted in intertwining histories of land ownership, violence, and debt. Migration in the region developed during the colonial era and escalated during the armed conflict (1960–1996) that killed or disappeared over 200,000 people, internally displaced one million people, and spurred over 200,000 people to flee the country (with 46,000 registering with the U.N. High Commissioner for Refugees in Mexico).³³ While migration in “postconflict” Guatemala is largely characterized by labor migration to the Pacific coast of Guatemala, to southern Mexico, and to the United States, legacies of colonialism and conflict within Indigenous communities in the highlands of Guatemala continue to shape collective imaginaries of migration as well as the capital resources available to Indigenous families for daily survival.³⁴ As seasonal, regional, and transnational migrants, young people enlist migration as a collective and historically

rooted survival strategy that responds to their past experiences of violence and marginalization and to their present and future needs.

Discussions of indigeneity are critically important to understanding the ways colonial domination, neoliberal capitalism, and securitized approaches to migration management disproportionately impact Indigenous peoples over time. The erasure of indigeneity from discussions of migration is yet another form of racialized violence inflicted upon Indigenous communities, as it negates the discrimination and violence Indigenous people encounter in Central America as well as in zones of transit through Mexico, upon arrival in the United States, and following return. Discussions of the migration of Indigenous children are likewise critical to examining the relationship between international development that claims to create alternatives to migration which, as Juan Gabriel attests, is devastating Indigenous communities. Child migration—historically and in the contemporary moment—is an intergenerational necessity for the survival of Indigenous communities. By interrogating this migration, we likewise learn of the lasting and transnational reach of public policy—across geopolitical space and generations—on Indigenous peoples.

DEPORTATION AND THE SECURITY- DEVELOPMENT NEXUS

“Guatemala es país de origen, destino, tránsito y retorno” (Guatemala is a nation of origin, destination, transit, and return), explained the assistant director of the Casa del Migrante in Tecún Umán in 2015 as we sat in the courtyard of the shelter for transiting migrants. Three men leaned against the courtyard wall and two women sat on a blanket, sharing orange slices and attempting to hide in the limited shade of the July sun. With their backpacks and cellular phones, I initially mistook them for college-aged volunteers at the migrant shelter. “No, they are three Brazilians, a Colombian, and a Nicaraguan passing through. People from all over the world find themselves here in Guatemala. Some are coming; most are going; many are returned and trying again. People move in all directions. It’s all connected; we’re all connected,” he reflected. The assistant director, a K’iche’ man in his mid-forties, references *la cosmovisión del Pueblo Maya*, or Maya cosmovision, a system of values and beliefs in which the world, life, things, and time are interconnected. When these forces are in harmony, we experience true freedom, he later explained. This belief in interconnectivity

ARTURO: I'd bet she's never been to the desert; she'd be darker if she had.

MATEO: She's more *güera* [light-skinned] than you! No offense.

LH: None taken.

CAROLINA: So, let me get this straight, she doesn't look like me, dress like me, speak my language . . . and she still wants to tell *me* what *not* to do? *¡Púchica!* (Oh my gosh!)

Their critiques in rapid succession surprised me; Estela chuckled. From observations in classrooms and interviews with teachers and school administrators, I have observed how the Guatemalan public education system professes compliance to dominant narratives—to copy and memorize, to recite information verbatim, and to conform, often at the expense of questioning authority or valuing one's own identity, language, and history. During our planning sessions, I confessed my concerns to Estela. Would young people simply tell me what they thought I wanted to hear? That they so readily and vividly critiqued this PSA spoke not to my acumen as an anthropologist but instead to the opportunities Estela cultivated for young people to critically analyze the world around them, and in turn, the degree to which the narratives outright ignore these youths' realities.

As young people quickly pointed out, the PSAs broadcast in Spanish fail to reflect that 95 percent of child migrants from Guatemala are Indigenous, principally from the areas bordering Mexico. As Francisco knowingly intimated, "Bet she doesn't speak Mam, either." Why did advertisements directly targeting young Guatemalan migrants fail to recognize or outright ignore that child migration from Guatemala primarily and disproportionately impacts Indigenous communities? That Anitza (and the eleven other public service announcements in this series) was notably *not* Indigenous, did not dress in *traje* (traditional dress), nor speak any of Guatemala's twenty-one Maya and two non-Maya (Xinca and Garifuna) Amerindian languages reveals larger exclusions of indigeneity in discussions of migration from Guatemala. Young people also spoke to the intersecting racial and class divide between ladinos such as Anitza and Indigenous people in Guatemala. That she is light-skinned and considered snobbish links her race to her perceived elitist appearance and behavior. Anitza, they conjectured, had never visited the desert, which undermined her claims to knowledge and authority on the perils of migration. As Carolina summarized, this woman and by extension the campaign's producers do not share in race, class, language, age, appearance, or experience, yet still lecture them and

more specifically their parents about the dangers of transnational migration. The blatant hypocrisy in the PSA reveals the disconnect of how young people and their migranhood are imagined by those in power and, in contrast, how youth understand their own lives and futures.

It is important to recall that we met in San Juan Ostuncalco, a town of roughly fifty thousand inhabitants in the department of Quetzaltenango whose residents largely benefit from public amenities such as electricity and have access to consumer items such as televisions and radios in stores around the central park, in the town's market, and in Xela, Guatemala's second-largest city an hour bus ride away. In many communities where I conducted research, however, families lack the financial resources to procure a television and reliable electricity with which to view the PSA. In many communities in the highlands, Spanish is not the primary language. Thus, even the delivery modality, not just the message's content, misses the mark for many Indigenous communities impacted by child migration.

LH: What do you think about the phrase: "That innocence and that love that you see in your children's eyes every day"?

CAROLINA: Sure, I understand it. Parents love their children, but I don't think they believe we remain innocent forever. I mean, maybe when we were babies, but not now.

GIOVANNI: I have a friend who left [migrated] because his mom's new boyfriend didn't treat him well. My friend wasn't his son, and he didn't want him around; another mouth to feed.

MATEO: My mom thinks I'm *malcriado* [spoiled]!

LILIANA: Why do youth have to be innocent? What if we do something wrong or bad? Is it only okay to migrate then?

ALEXA: It's not as if our parents stop loving us when we leave. Though it's true that you do see a lot of terrible things so maybe we do lose our innocence during the journey. But I'd hope my mother wouldn't love me any less.

MATEO: We see a lot of difficult things even without leaving San Juan.

Young people quickly recognized that the depictions of childhood—filled with innocence, love, and protection—apply unevenly and shift over time. Carolina questioned the temporality of the claim that children are innocent—"maybe when we were babies"—but that a parent's love or concern is not necessarily

limited to chronological age, as Alexa contended. A disconnect between young people's perspectives and those of the advertisements is seen in the visual and rhetorical depictions of migrants as "*niños y niñas*" (boys and girls), belying the fact that the average age of unaccompanied migrants from Guatemala is fourteen and a half. Many young Guatemalans at the age of thirteen or fourteen do not view themselves as dependent children, rather they speak of contributing to their families, pursuing education, starting careers, and beginning their own families.

Arturo added, "It makes me think of the other video we watched . . . that children shouldn't be doing 'adult' things." Arturo was referencing another PSA we reviewed that had claimed: "*No podemos permitir que los niños dejen de ser niños por hacer algo que no les corresponde.*" (We cannot allow children to stop being children by doing something that doesn't suit them.) Indeed, in Guatemala, depictions of childhood filled with consumer goods and toys and free of "adult" responsibilities routinely circulate in the media. The PSA, as young people described it, is rooted in a romanticized ideal of childhood—a space characterized by play and innocence, by the absence of responsibility and "adult" knowledge, and by minimal physical and emotional maturity, unlike Giovanni's friend, who experienced feelings of being unwanted by his parents. What happens if one's homelife does not echo these oversimplified narratives of childhood? What if parental care and family affection, typically depicted within nuclear families, looks different or is not present at all? Or, as Mateo jokes, what if he is *malcriado*? As young people insightfully critiqued, the PSAs presume that childhood is both universally experienced and static.

What scholars of childhood studies readily recognize and what these youths identified is that childhood is a cultural construction; that is, childhood varies across time, location, gender, ethnicity, and class.²² Young people quickly deconstructed the oversimplifications that undergird the campaign's intended intervention. The youths sitting around the table notably did not live idealized childhoods according to U.S. or Guatemalan middle-class social norms. Carolina, Alexa, and Liliana described waking early each day to prepare food for the family; Mateo, Giovanni, and Arturo each assisted with an array of household chores before school. Those who attended school returned home to tend animals, care for younger siblings or aging grandparents, clean, wash clothes, or work in the fields. Alexa sewed school uniform shirts for sale at a local store

while her eleven-year-old sister sewed zippers, sold piecemeal for three quetzales (forty U.S. cents) to a tailor a few towns over. Francisco no longer attended school; he migrated seasonally to the coast to work on sugar plantations, and when in San Juan, he farmed with his father and elder siblings. None of the youths described their lives as free from financial concerns or “adult” responsibilities. Rather, they spoke of these tasks and responsibilities as social obligations to their families.

“My parents do not care for me less because I earn money from sewing; they are grateful to me for the little I contribute, and I am grateful to them for bringing me into this work and caring for me. It is all a part of the circle that connects me to them and us to others,” Alexa explained. Her sage insights do not discount the material deprivation that young people and their families must navigate; they do, however, recognize the reciprocal social, emotional, and financial contributions of young people as social actors, caregivers, and migrants (see chapter one).

PATHOLOGIZING PARENTS

A girl dressed in faded jeans and a red tee-shirt, perhaps seven or eight years old, sat huddled on the ground, knees drawn to her chest. Hand to her face, she wiped away an invisible tear. A highly coiffed woman named Maria Luisa stands in the foreground, pointing sternly at viewing parents. She lectured:

Si quieres más oportunidades para tus hijos, no los envíes en un camino incierto y peligroso. Con la migración infantil no encontrarán mejores oportunidades de vida. De hecho, pueden encontrar la muerte. Recuerde que como padres nuestro deber es proteger. [Un locator] Busquemos el sueño guatemalteco. Dejarlos ir es dejarlos morir.

If you want more opportunities for your children, do not send them down an uncertain and dangerous road. With child migration, they will not find better life opportunities. In fact, they can find death. Remember that as parents, our duty is to protect. [A male announcer] Let's find the Guatemalan dream. Letting them go is letting them die.

Looking around the table, I asked, “Do you think your parents would send you to the United States?”

Without hesitation, Mateo replied with his usual levity, “I don’t think the post office could take a package my size!” The ridiculousness, even bravado, of his suggestion matched the responses of some youths, who appeared simultaneously bewildered and increasingly suspect of the messages delivered in the campaigns.

FRANCISCO: My parents didn’t *send* my brother. He wanted to go. We all wanted him to go, I mean, we didn’t *want* him to, but we needed him to and he seemed okay with it.

LILIANA: “Don’t send your children to the United States.” She acts like we have nothing to say [about it]. I don’t want to migrate if I don’t have to, and my parents wouldn’t force me.

ALEXA: I don’t know. I kind of agree that when someone migrates, you have to prepare yourself for the worst. When my cousin went to El Norte [the United States], my aunt cried and cried because she feared she would never see her again. You do have to be prepared.

FRANCISCO: Yeah, you never know if you will ever hear from them again, but it’s not like my parents wanted to *kill* my brother. It’s not their fault if something terrible were to happen. They may feel that they are responsible so maybe the ad is just trying to make them feel guilty.

MATEO: I don’t know about you all, but I want to hear more about this Guatemalan dream. *¡Que chilero!* [How cool!]

Just as young people identified that adults are presumed responsible for children—and children thereby dependent upon adults—so, too, they recognized how parents are held as culpable for a young person’s migration. The advertisements, they argued, framed migranthood explicitly as a corruption of a child’s innate innocence and implicitly as a lapse in parental love and dedication. Put another way, children who are victims of parental or adult malfeasance migrate. Yet, in these youths’ experiences, parents did not force their children to migrate unwillingly or unknowingly to the United States. For Mateo, the absurdity of a parent sending him against his will was as far-fetched as being sent to the United States via Guatemala’s now defunct national postal service.

Liliana contested that these portrayals of parents simultaneously overshadowed young people’s social agency in contexts of migration. “[L]ike we have nothing to say” echoes the position of the child as inferior or somehow exclusively

dependent and stands in marked contrast to the integral roles children often assume in familial decision-making processes, as well as to the decisions they make as interdependent social actors.²³ After over three hours of conversation, it was clear young people had a great deal to say about their lives, their communities, and migration. They described how their families recognize that migration is highly susceptible to failure and is undertaken at great cost. The three youths who had attempted to migrate—Francisco, Mateo, and Andrea—viewed the decision to migrate as a gesture of their parents’ trust in them to provide for their families, as a collective investment in their future, or as a long-held promise to reunite in the United States. In contrast to popular depictions of unaccompanied children in the United States and Central America as unattached, youth are not migrating “on their own.” Rather, they tap into complex social networks to facilitate transnational migration. By ignoring the social and financial capital necessary to facilitate movement and settlement of young people, discourses of migranthood simultaneously reduce child migration as a symptom of parents’ lack of knowledge and ignore the diverse contexts in which young people may choose migration with or without familial support.

These campaigns were not alone in their pathologization of migrants’ parents; they were accompanied by UNICEF’s simultaneously developed parenting classes intended to “educate” parents on the hazards associated with migration. Rolled out in 2014 and 2015, the course curriculum presumed that young people passively acquiesce to parental decision-making and that parents were also ignorant of the dangers of migration. The antismuggling laws in Guatemala and the United States similarly reduce the multifaceted conditions that spur child migration to ones of parental ignorance and culpability. Emerging from differing cultural constructions of childhood, outside assessments of parental fitness and modes of caregiving become markers of “unenlightened parents” or “backward cultures.” This narrative derives from cultural constructions of childhood and parenthood that significantly are not shared by young people and their families.²⁴

EL SUEÑO GUATEMALTECO

Each public service announcement in this series ends with a male announcer’s booming voice commanding the audience: “*Busquemos el sueño guatemalteco. Dejarlos ir es dejarlos morir.*” (Let’s find the Guatemalan dream. Letting them

go is letting them die.) I asked young people a series of questions explicitly about *el sueño guatemalteco*—What do you think about the Guatemalan dream? What is it, and is it attainable?

ARTURO: If a family struggles to eat and the government doesn't provide work, what can we or our parents do? If there is a need, we work.

ALEXA: It's better to be on our own land, the land of eternal spring, than in the United States without family and without a career we can work toward. It's better that I study and move forward in our country, but when there isn't opportunity to work or to survive here, what choice do I really have?

FRANCISCO: The government should really offer free education, stable jobs, and security. Maybe then there would be a possibility of a Guatemalan dream. Right now, with this corrupt government, I truly don't see it.

FERNANDO: When I was younger, I wanted to grow up to be a gringo [non-Latin American]. That was my dream.

CAROLINA: Please explain it to me how to fulfill my dream. I just don't see where to begin. Is it to have a big home, two Mercedes, the latest phone, and stylish clothes? Can I wear my *traje* and speak Mam and still achieve the dream? That is not *el buen vivir* [Indigenous conceptualization of good living].

GUSTAVO: What if it's not safe to work here? No matter my education, my career, my wages, it isn't relevant if I can't be safe in my community or go to church or school or play soccer. It's their fantasy, not my reality.

MATEO: Maybe it's all a conspiracy.

ESTELA: A conspiracy?

MATEO: . . . to have us think there is a dream so that we work, and work and work, and the elite keep benefiting from us.

ALEXA: I dream of *el derecho a no migrar* [the right to not migrate].

Countering the illusive American dream with a call to develop the Guatemalan dream did not resonate with young people's everyday experiences of under-resourced schools, high unemployment, and financial instability in San Juan Ostuncalco. For Francisco, migration is not evidence of a failure of personal or collective imagination or even a lack of knowledge of the risks of migration, as these public policies suggest. Even for those able to secure an education and pursue a career, as Gustavo and Mateo argued, there is a shortage of employment opportunities for young professionals. Young people both in and

beyond this gathering attributed a lack of livable wages and dignified work to the government's failure to create economic opportunities due to pervasive corruption, social inequality, and systemic racism. Gustavo and Mateo similarly were critical of the manipulation of their labor in the financial interests of the elite, a well-documented trend of the state privileging corporate interests over its citizenry. They squarely placed responsibility on the political leadership in Guatemala that repeatedly has failed to establish livable and dignified conditions for Indigenous communities and to secure public safety.

As Carolina intimated, the notion of a "Guatemalan dream" suggested in these advertisements is further reliant on a capitalist notion of success exemplified through conspicuous consumption and, notably, a suspension of outward markers of one's indigeneity. Fernando's childhood dream to become a gringo is a painful reminder that in Guatemala, valuation is bound up in notions of class, race, indigeneity, and migranhood. In contrast, Carolina expressed that wearing her *traje* and speaking Mam should not be the antithesis of success. Quite the contrary, she suggests her dream lies in aspiring for *el buen vivir*—a visionary Indigenous movement rooted in the valorization of Indigenous ways of knowing and the advancement of a collective well-being. In other words, *el buen vivir* is placed above individual material needs and wants and instead focuses on the *equilibrio* (harmony or balance) of the community, which, broadly conceived, includes people, nature, the spirits, and the Earth. For these Maya Mam youths, this balance is essential in enacting the right to not migrate.

RESISTANCE

If these messages about child migration and migranhood are so transparently false to the people for whom they are designed to reach, these campaigns cannot be effective in responding to the concerns or needs of Indigenous communities. Even while false, however, these discourses matter. They matter because they dehumanize migrants, homogenize the multiplicity and complexity of their experiences, render individuals and communities invisible, and reinforce inequality and injustices. They powerfully shape and are shaped by state and foreign policies, and they become embedded in institutional and social practice. Taken as naturalized and generally accepted knowledge, discourses not only are made material in bodies, spaces, and objects but likewise are internalized.²⁵ For the young people with whom I work, these discourses influence the social

fragile or failed states where underdevelopment is deemed potentially dangerous, principally in relationship to potential wars, terrorism, and the movement of refugees and migrants.

This security-development nexus drives U.S. responses to migration management along its borders, in zones of transit in Mexico, and within policies and institutions in Central America. To illustrate this nexus and its impact on children, I dissect three contemporary policies that emerged in direct response to Central American child migration—the Programa Frontera Sur (PFS, Southern Border Program), a migration management program in Mexico; the Central American Minors (CAM) program, which the U.S. Department of State established as an administrative process for youth confronting violence to travel lawfully from Central America to the United States, avoiding the dangerous journey through Mexico; and the Alliance for Prosperity Plan (APP), the centerpiece of U.S. foreign policy toward Central America. I examine how specific policies and development initiatives across Guatemala, Mexico, and the United States privilege short-term securitized migration management over long-term social programs informed by the specific economic, social, and cultural dynamics in the region. In contrast to claims that development yields greater regional security, I argue that these policies produce rather than alleviate the very structural violence young people and their families flee.

CARSICKNESS: THE MAKING OF A FRIENDSHIP

I first met Liseth, a thirty-five-year-old Mam woman, in 2014 at a series of public workshops and events on child migration funded by USAID and coordinated by the International Organization for Migration (IOM) in the department of San Marcos. The Coordinator of IOM-Guatemala invited me to attend these events to witness their new community initiatives in action. As a consultant, Liseth helped coordinate the events with the Mam community in San Marcos. In the early hours of Friday morning, we departed in an IOM pickup truck from downtown San Marcos for Sibinal, a community along the Guatemala-Mexico border. On our drive, Liseth and I became fast friends, identifying mutual acquaintances, sharing tequila-infused home remedies for Liseth's oncoming cold, and belting out Maná's "Rayando el sol" that played on the truck's radio, much to the mortification of my children nestled in seats behind us. When two of my children became carsick on San Marcos's winding mountain roads, Liseth

patiently helped care for them, massaging a pressure point on my six-year-old son's wrist to relieve his nausea while I held a plastic bag for my peakish three-year-old daughter. My eldest, then eight years old, blissfully slumbered beside her. Over the next two days of activities throughout San Marcos, I learned piecemeal of Liseth's flight from Guatemala in the late 1980s, her childhood in informal refugee settlements in Mexico, the impediments to her reintegration into community life in Guatemala, and her education and activism on behalf of young people now being deported from the United States and Mexico. As Liseth shared her life story, I was struck by its uncanny parallels with many of the stories young migrants had shared with me.

After nearly two years of friendship and several visits to her family home, I asked Liseth to participate in an oral history interview, or *testimonio*, as she more aptly came to term it. A *testimonio* is a method of recording and preserving a first-person, reflexive account with the conscious purpose of bearing witness to historical events. It is distinctively and intentionally political, designed to raise consciousness about past wrongs.⁷ According to Brazilian educator Paulo Freire, *testimonio* is simultaneously a means of liberation from oppression and an act of solidarity endeavoring to speak for justice against crimes against humanity.⁸ *Testimonio* as a method ensured that Liseth could offer her own insights and assessments of extraordinary historical events of her childhood while living as a refugee in Mexico. Over several weeks of meeting, Liseth recounted the following transcribed narrative, which she generously agreed to share here. Liseth's experiences of migration and return serve to contextualize contemporary child migration as a historically rooted strategy in the face of uncertainty and violence inflicted upon Indigenous communities. Her *testimonio* likewise illustrates how securitization and development policies are part of the ongoing approach to migration in the past, in the present, and if we do not radically shift course, in the future.

There were two people who had been killed, their bodies left on the side of road. No one touched them for days out of fear that it would bring attention and reprisals. Eventually, a bus driver couldn't stand it anymore, so he put the two bodies on his bus and transported them back to the community. He knew them, you see; they were his cousins. I was coming home from school with my brother. We boarded the bus not realizing that the bodies filled the aisles. I knew the situation was growing more intense, but it is different to see death up close . . . to see bullet holes in flesh,

to see their bodies bloated from the rain, to smell the stench. I was six. My brother was twelve.

My family needed to leave. We thought we'd only be gone for a week. At the time, I had no idea we would be gone that long. I don't exactly know all of the reasons why we left at that particular moment, but we left with nothing, really, and walked awhile and then took buses closer to the border and then walked some more into Chiapas. We didn't tell anyone . . . not our family nor our neighbors. We just left. I felt like I understood why we were leaving, but at the time, I didn't understand the impact it would have on my life.

We arrived in Mexico and lived in a clandestine community with other refugees from Guatemala. There were no services and no organizations to help us. Eventually we moved to live in an area run by Catholic nuns. We thought it would be better than being in an area without support, but we were wrong. The way they treated us, like dirty Indians, as if our lives didn't matter beyond the free labor we provided to them. They gave us nothing and treated us so poorly. I don't remember a lot from that time, but I do remember feeling like they were wolves in sheep's clothing. It's hard to remember a place that inspires you to forget.

I eventually was able to go to school. My brother wasn't able to—I don't think he was interested anyway. He worked with my parents in the fields, and I found a purpose in school. My head was always in books. In some ways, it was easier for me because I was in school and I got an education while he had to work and shoulder a lot of the responsibilities with my parents. What I initially thought would be one or two weeks became eight years.

When we finally decided to return to Huehuetenango, it was scary. Just as we had left, we returned—with nothing. We returned to our home, but it wasn't ours anymore. Other people lived there now. It was complicated. We didn't know anyone. We didn't have anything that said the house or the land underneath was ours, no titles or legal certifications. It was our community's land anyway, not really ours. We cultivated it together. When we returned, it was just our word that our families had lived there for centuries. I think my parents decided that it just seemed too risky to try to force our way back. You see, the people living there were displaced too. They had also fled from the department of Quiché. I felt really disoriented. I had spent so long trying to remember this place only to find that it was no longer. I learned to forget the past so that I could survive the present.

When I returned to Guatemala, I found the doors closed. How many years of my life I lost! I tried to enroll in school but MINEDUC (Ministerio de Educación; Ministry of Education) wouldn't recognize my education in Mexico and, honestly, I was sin papeles (without documents) in Mexico when we were there. In Guatemala, I couldn't enroll in school. We tried and tried, so many offices, so many forms but never the right ones. My parents were desperate. Here we were, returning "home" but without papers. We were refugees once again but this time in our own country, on the lands of our ancestors. It was all a great deception for me—to not be wanted by my own country. It was an extremely difficult time for my family—to find work, me trying to go to school. At the time, I was upset and angry. I loved school. I still do. But I was stuck. The return was likely easier for my brother, or at least I thought, because he didn't have to manage accessing all of these institutions and paperwork; but now I see the consequences for him . . . he's lost, restless. He still can't sit long enough to be a husband or a father.

Eventually, my family and I returned to southern Mexico, leaving once again. After a year, we were able to get my paperwork in order in Mexico. The irony, right? I somehow got Mexican identification papers . . . to this day, I'm not sure how but I think my father made some arrangements [rubbing her fingers together to insinuate a bribe]. We returned to Guatemala once again, but by this time I had already lost three years of school and the teachers would not let me join the other kids my age. I was devastated. I survived by assuming my Mexican identity and hiding my Guatemalan identity, which is both a fiction and a reality at the same time. I entered school as a Chiapaneca [from Chiapas, Mexico], speaking Mam. I acted as if I was Mexican for a long time; it was just easier than having to explain why we left and where I was for all those years. I acted as if I were an immigrant here in my own country because this is what it felt like in this place. But I also didn't feel welcome in Mexico either.

It took nine years, but I finally made it back to school and eventually to university. I survived all of the taunting and torment and racism in university. I was determined to complete my studies no matter the ridicule. I still feel as if I don't have a home, anywhere on earth. I feel like a feather in a windstorm—each gust blows me in a new direction; I cannot land no matter how hard I try. It has taken its toll, but I turn inward and to my culture to find strength and connection. My nahual [energy or spirit] is I'x [Jaguar], after all. I'x is a feminine energy, a spirit

that seeks to protect Mother Earth. Ix is known for her passion, bravery, and commitment. With her energies, I can confront difficulties that enter my path.

Now, I'm here. My hope comes and goes in my life, but I keep learning and fighting. I am finding purpose in helping young people who are returned to Guatemala. I see me in them and them in me. Like me, they are returning to a country that does not treat us well, to a place that shames us for who we are and what we've experienced, to a place that doesn't value our culture or our identity . . . and to a government that impedes us. Como Maya, hemos sufrido tanto. [As Maya, we have suffered so much.] . . .

My hope for them? My hope is for them, just like me, to rediscover Maya cosmovision, the Maya calendar and its accordance with the vigesimal, and to learn about the ways we are connected to everything and everyone. Just like I did, they, too, can find the strength in the past, to live in the present, and to imagine a future that connects all of us.

HEMOS SUFRIDO TANTO

Liseth's deployment of the common phrase, *hemos sufrido tanto* compresses centuries of abuse, violence, discrimination, and exploitation by the Spanish colonial authority, the Catholic and evangelical churches, ladinos, the military dictatorship, the U.S. Central Intelligence Agency (CIA), and contemporary neoliberal policies.⁹ Accomplished historians and anthropologists have provided insightful scholarship on the impacts of colonialism, the plantation labor system in the late nineteenth and early twentieth centuries, and the armed conflict on Maya communities in the Americas.¹⁰ Rather than replicate this well-established body of literature, I provide an admittedly brief overview of Guatemala's armed conflict before delving into how U.S. immigration policy and contemporary securitization of aid create and institutionalize violence.

In response to the historic erosion of Indigenous land ownership discussed in chapter one, democratically elected Guatemalan president Jacobo Árbenz Guzmán (1951–1954) passed an agrarian reform act in 1952 known as Decree 900 that sought to expropriate uncultivated land from estates of over 223 acres and to redistribute it to five hundred thousand landless, primarily Indigenous *campesinos* (farmers).¹¹ This reappropriation of land impacted nearly 400,000 acres owned by U.S.-based United Fruit Company (UFC). In retaliation, the

CHAPTER 4

¿QUÉDATE Y QUÉ?

IN GUATEMALA, securitized migration management under the Alliance for Prosperity Plan (APP) and its predecessor, Central American Regional Security Initiative (CARSI), have overshadowed more traditional development initiatives. But is this simply a question of misguided proportionality? When given the human and financial resources, can development actually curb migration? This chapter explores this question by tracing two development initiatives that explicitly claim to support unaccompanied children deported from the United States and Mexico, to reintegrate them into their communities, and to create alternatives to (re)migration. The first is a joint USAID and IOM effort to build the capacity of the Secretaría de Bienestar Social (SBS, Secretariat of Social Welfare), which receives unaccompanied children deported from the United States and Mexico and is charged with the “family reunification” of deported minors. To illustrate this family reunification initiative in action, I recount the experiences of sixteen-year-old Delia as she moves through multiple institutions across geopolitical space and how she experiences the program. While each experience of migration and return is unique, Delia’s is representative of how many young people described to me their experiences of “reunification” within SBS facilities in Guatemala.

What follows is a synthesis of Delia's narrative as she is deported from an Office of Refugee Resettlement (ORR)–subcontracted facility for unaccompanied minors run by an NGO in Chicago and processed at the Guatemala City Air Force base where I first met her. While written chronologically for the reader's clarity, Delia's narrative did not unfold linearly or at once. The narrative was compiled over several conversations with Delia and her family within Guatemala's SBS facility and in subsequent visits in their hometown of Sibinal in the department of San Marcos over three years. Throughout, I seek to convey Delia's experiences with the unease, ambivalence, and agony she and her family shared with me. I supplement the narrative with ethnographic details from my prior research within the very Chicago facility where she was detained and from firsthand observations at Guatemala City's Air Force base and SBS facility where she was held until her parents arrived from Sibinal.

The second development initiative is called ¡Quédate! (Stay!), a program specifically designed for young people like Delia to "reintegrate" into their families and to create "alternatives to migration" for children. Although not the Guatemalan government's first foray into development initiatives targeting child migrants, ¡Quédate! garnered uncharacteristically high levels of public attention from Guatemalan officials and financial support from USAID and IOM. The discourses undergirding the ¡Quédate! program, like those of the well-funded Dangers Awareness and Know the Facts campaigns, however, fail to grasp why young people migrate. Moreover, they ignore the reverberating and enduring impacts of detention and deportation on young people and their families. Taken together, these development initiatives—from conceptualization to implementation—reinforce historical social hierarchies between the ladino elite and Indigenous peoples and reify their migranhood. Without addressing the social inequalities woven into state institutions, these development initiatives fail to effectively support young people's right to *not* migrate.

DELIA: "IT'S TIME."

The mattress creaked as Delia rolled over. For the last three months, she had not slept well—the uncomfortable mattress, the buzz of the neon lights from the hallway, and the snores of seven children sleeping on bunks in her room were unsettling, but the screams of kids waking from nightmares were worse. Their cries were filled with fear, panic, and pain. Sleep deprived, Delia was given a

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sleeping pill by a psychiatrist, which “made me feel like a zombie. I couldn’t lift my head without it pounding. It’s not for me,” she described.

Delia lay awake as she often did, thinking about returning to her hometown outside of Sibinal on the Guatemala-Mexico border. “I really missed my parents and my little sister, and my mom’s cooking. The tortillas in the shelter are like cardboard, and so much rice. I miss nighttime, bundling up in my sweater and sitting outside in the courtyard in darkness, looking up at the sky. There [in the detention facility], the light is always on. I am never alone.”

At 2 a.m., a staff member shook Delia awake. “Get up. Get your things. It’s time.” Disoriented, Delia asked, “Time for what?”

“For your flight to Guatemala.” Delia was being deported.

Her bunkmate Amelia stirred, waking to the sounds of Delia stumbling to get dressed. “She gave me a hug and we started to cry,” Delia recalled. It had only been four months, but detention, or “shelter care” as the NGO staff euphemistically termed it, had made Delia and Amelia inseparable. They comforted each other when they were frustrated at the uncertainty of their futures, craving forbidden coffee, bored by the same action movies blaring on repeat, or homesick for their friends in their native Guatemala. “It’s like they couldn’t decide if we were babies needing to be burped or someone who couldn’t be trusted.”

Delia’s unannounced, predawn departure prevented her from saying goodbye to her new friends and from mentally preparing for return. “It was a difficult time. I wanted to stay in America but not in *that* place. I made friends there and didn’t want to say goodbye. I didn’t know what would happen to them or if I’d ever see them again. They became my family there, only they know what it was really like, but I also missed by family and my country. It was confusing.” She knew the day was coming, but the facility staff had not warned her of the date or time of her imminent departure.

“If kids knew they were leaving tomorrow, they would abscond today,” a facility administrator justified. Relegated to knockoff Crocs to deter escape in Chicago’s wintery mix, Delia put on jeans and a light-blue tee shirt. Finally, she cast off the primary-colored sweat suit with “48” written in black marker on each piece of clothing. “Number forty-eight? I have a name, you know,” she later indignantly told me. She threw her few personal belongings in a black trash bag, and the facility’s transportation coordinator, a former Army private, drove her to Chicago O’Hare airport.

Delia was detained in one of over one hundred ORR facilities run by NGOs across fourteen states. She had been apprehended by the Border Patrol near Nogales, Texas, after a month of traveling by bus and train through Mexico. She had hoped to reunite with her older sister living in Maryland, but when her sister did not complete the necessary paperwork to secure her release, Delia decided to request voluntary departure rather than remain in detention.

Delia describes her experience at the Chicago O'Hare airport, "It was quiet, eerie really. Stores were locked up. There weren't people at the counters. I'd never been on an airplane before, so I was nervous. We flew to Arizona and then waited awhile." Delia was accompanied by the transportation coordinator on a commercial airline from Chicago to Mesa, Arizona, one of ICE Air's five U.S. hubs, where she boarded a chartered flight to Guatemala.

In 2013, when I first observed deportation flights landing at Guatemala City's Air Force base, there were one or two flights per week. Two years later, when Delia returned, flights arrived almost daily. From 2010 to 2014, ICE Air deported 930,435 individuals to 185 countries, with Guatemala consistently being the most frequent destination for flights.¹ Since 2015, ICE Air has deported approximately 100,000 people annually. Individuals may be deported on commercial aircrafts, via ground transportation, or on foot at ports of entry along U.S. borders—but these ICE Air flights are big business. ICE pays an average of \$8,419 per flight hour regardless of the number of people the planes carry.² A 2015 audit by the DHS Office of Inspector General cited a need to fill the vacant seats.³

Delia described her flight:

The [transportation coordinator] handed some papers to immigration. The officer put a bracelet on me. It had my name, picture, birthdate, A [Alien registration] number. We all got them. I felt like tagged cattle. They patted me down to make sure I didn't have anything in my pockets. They even looked in my mouth. No one had shoelaces or belts. I was one of the last to get on with the other kids. In the back of the plane, there were mostly men but also a few women. They all had handcuffs—the ones that connect their feet to their wrists. One man looked like he just walked out of the desert onto the plane; he really smelled. Everyone looked tired and nervous, like me.

It was a long flight. I kept looking out the window. I've never seen clouds so close. I wonder what they feel like. I wanted to wade through them. They

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gave us a bag with a sandwich, a granola bar, and a bottle of water. I didn't realize how hungry I was. I hadn't eaten all day. A little before we landed, the officers took the handcuffs off of the adults, so they could eat.

The landing was a little scary, but it was kind of a blur. I was nervous, worried, excited, sad. I couldn't wait to see my family. I missed them so much. I had so much to tell them. But I know that I failed them and that they would be disappointed in me. I was disappointed in myself. I didn't know what would happen once I got home . . . how would we manage?

From the tarmac, I observed Delia, along with 130 other deportees, deplane from the innocuous blue-and-white 737 onto Guatemala City's Air Force base. Officials wearing white polo shirts and navy blue vests from the Ministerio de Relaciones Exteriores (MINEX, Ministry of Foreign Relations) directed returnees down a metal staircase and into a nondescript cement building. Returnees shuffled single file, heads down.

Marimba music blared as the adults lumbered into the building. To one side, a Banrural counter advertised financial services to returnees, offering to exchange U.S. dollars to quetzales. On the other side, employment signs for a multinational call center were displayed: "*Encuentra las mejores ofertas de empleo en Guatemala*" (Find the best job offers in Guatemala) and "*Comienza con un gran empleo el día de hoy! Salario mensual. Q5,500.00 incluyendo bonos*" (Begin a great job today! Monthly salary: 5,500 quetzales [723 USD] including bonuses), enticing English speakers to work in Guatemala's growing industry of multinational call centers. In my observations at the military base over multiple years, including the day Delia returned, I never saw a representative sitting at the counter.

As the returnees sat down and awaited processing, a woman with sparkled eyeshadow and rosy cheeks enthusiastically cheered in a mixture of Spanish and K'iche':

¡Bienvenidos compañeros! ¡Bienvenidos héroes! Ricos o pobres, grandes o pequeños, hombre o mujer, lo que seas, son compatriotas. It ko chupan ri a tinamit ki kin ri ka winiäq. Ya estás en tu país y con tu gente. Este es tu patria.

Welcome, friends! Welcome heroes! Rich or poor, big or small, man or woman, whatever you are, you are compatriots. You are now in your country and with your people. This is your homeland.

I wondered, what good comes of deportation when men, women, and children are taken from their families, jobs, and communities in the United States? Why rejoice in plans thwarted by a busted taillight, a workplace raid, or for Delia, the suffocating heat of the desert while the Border Patrol lay in wait? “There is nothing to celebrate here,” a man wearing a University of Texas tee shirt jeered from his white plastic chair.

The MINEX representative countered, “Because there are people who leave and never return. If you’re sitting here in one of these chairs, you are someone who has risked a lot, someone who has sacrificed for your families and your communities. There is no reason to be ashamed.” Indeed, many deportees are ashamed at their failure to remain in the United States, to remit enough to their families, to fulfill aspirations that spurred migration—be it a month or a decade earlier. Authorities would process the adults over the next three hours, asking questions, taking note of their names, communities of origin, and arrival details in an oversized accountancy log.

In interviews with staff processing returnees, I was repeatedly told that returnees were offered a menu of services—medical exam, mental health evaluations, bus fare to return to home communities; however, across my multiple observations over three years, I never witnessed these resources. At best, some migrants used the often broken pay phone or were offered an occasional brown bag filled with a sandwich and juice. More often, returnees were processed and released to the entrance of the military base, left to borrow a cellular phone to call a family member or to beg for bus fare. Recognizing the growing demand for services, some bus routes relocated to the front of the military base, as did several smugglers offering deals to return to the United States. Some deportees remigrated immediately; others returned home for several weeks or months before trying again.

Deported unaccompanied minors are processed differently than adults. I climbed into the back corner of a dark-blue minivan, sitting alongside Delia and eight other unaccompanied minors who were shuttled across town to a SBS facility called Casa Nuestras Raíces (Home of Our Roots). At the time, it was one of two SBS facilities that processed returned unaccompanied children in Guatemala. The Guatemala City facility receives children returned on ICE Air chartered flights and the occasional youth deported from the United States and northern Mexico on commercial flights into the international airport. The other SBS facility, located in the department of Quetzaltenango, receives youth

returned by bus from southern Mexico. At Casa Nuestras Raíces, youth undergo screenings with a case worker, social worker, and on occasion, a psychologist. Asked a litany of the same questions over and over again, fatigued and anxious young people wait up to forty-eight hours for the arrival of family members, who often receive little to no advance notice of their child's arrival.

Delia would wait two days until her parents Rigoberto and Maria Isabel arrived. They had not been notified of the timing of their daughter's return and had to borrow money for the fourteen-hour bus ride from Sibinal to Guatemala City. Rigoberto and Maria Isabel were frightened by the trip; they had never visited Guatemala City and knew only of the notorious gangs that gun down motorists and the corrupt police that shake down bus drivers and their passengers. Tucked away in Zona 1 of the city, Casa Nuestras Raíces is not easy to find. After wandering through the city for three hours, Rigoberto and Maria Isabel arrived at the yellow building and rang the bell.

They were not allowed to see Delia immediately. Passing their *cédulas* (identification documents) and Delia's birth certificate through the metal bars, they waited. Unlike many families who do not have these documents, Rigoberto and Maria Isabel were fortunate; they had secured copies for their children several years prior when their eldest daughter sought asylum in the United States. After over one hour, Rigoberto and Maria Isabel were directed to a waiting area where they were instructed to watch a video playing on a small television hung on the wall. The video recounted the violence migrants confront en route to the United States—the harsh elements, menacing gangs, thieves hopped up on cocaine, and rapists at every turn. The video warned: “It is your responsibility to be good parents and to provide for your children. Do not send them into harm's way.” The video failed to mention the 5,924 homicides in Guatemala in 2014.⁴ Ignored was the statistic that 59 percent of Indigenous people live in poverty or Guatemala's skyrocketing unemployment and underemployment rates.⁵ The varied reasons why young people migrate were overlooked altogether. Rather, it was Rigoberto and Maria Isabel who were to blame for their “uneducated and selfish decision to send their child to the U.S.,” as a case worker explained to me within earshot of the couple.

This explanation was nothing new to Rigoberto and Maria Isabel; they had endured insults of being stupid, backwards, or *brujos* (witches)—in health clinics,

government offices, and schools—because they are Indigenous. Within the walls of the facility, these historically rooted racist discourses are both egregious and mundane in the ways that staff talk about and interact with Indigenous parents and youth. In these interactions, I observed a pattern of demeaning behavior by SBS employees in threatening to call police on parents, to remove children from their custody, and to bring charges for smuggling their children. In more mundane ways, staff treated children and their parents with a lack of respect—refusing them food, being inattentive to needs for hygiene products, not allowing children to socialize with each other, refusing parents access to the facility's restrooms, and repeatedly scolding them for speaking in their respective Indigenous languages. At the video's conclusion, I observed a case worker proceed to lecture Rigoberto and Maria Isabel. "If your daughter migrates again, she will likely end up dead and it will be on your heads. God will not forgive you. And, if she is returned again, she and your other children will be taken from your custody. You will be sent to jail. *You* must be responsible for your child; she is *not* responsible for you."

After several hours, Delia was finally released to her parents. They embraced in the waiting room. We all were in tears. Speaking in Mam, Rigoberto and Maria Isabel welcomed their daughter home, thankful that she was safe and assuring her not to worry. Maria Isabel handed Delia her *güipil* (blouse), *faja* (sash), and *corte* (skirt) to replace her jeans and sweatshirt, telling her, "You should be proud of who you are and where you come from," Delia later translated for me. Her *traje* (traditional dress) also served a practical purpose—to conceal her migration from inquisitive neighbors who may be prone to gossip, as girls were often assumed either to be raped en route to the United States or to prostitute themselves to pay for their passage.

Attempting to explain the interaction to an outsider anthropologist, the SBS director commented to me, "See, they are forcing her to be something she doesn't want to be. They don't want to be modern."

Delia emerged from the restroom, dressed in her multicolored *güipil* and dark *corte*. She hugged me, thanking me for the hot tea and cookies I shared with her parents during their prolonged wait and promised to remain in touch. Turning to her parents, Delia whispered, "It's time to go home. We are not welcome here."

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RETURN, REUNIFICATION, REINTEGRATION

In the United States, “voluntary departure” is the most common form of removal for unaccompanied children. Described as a discretionary “benefit” to those who have crossed without permission into the United States, voluntary departure does not carry a mandatory ten-year bar from future admissibility to the United States, yet young people do not experience it as voluntary nor as a benefit. Young people held in ORR facilities for unaccompanied minors routinely request voluntary departure because, simply put, they are tired of detention. In the Chicago-based NGO facility where Delia was held, her freedom of movement was restricted through tactics such as surveilling her actions and reactions via video cameras and “line of sight” observance; recording her sleep patterns, conversations, and phone calls in institutional files; and restricting access to information about her case—be it reunification with her sister, upcoming court dates, or her impending deportation. ORR has long shared the files of its NGO subcontractors with ICE. As I document in my earlier work, *Migrant Youth, Transnational Families, and the State: Care and Contested Interests* (2014) these files can be and have been used against children in immigration proceedings. In May of 2018, ORR and ICE signed a memorandum of understanding universalizing this previously ad hoc practice by mandating continual information sharing, often with devastating consequences for children and their families. Like Delia, young people describe ORR facilities not as “shelter” or as “care” but as “lost time,” “traumatic,” and “a nightmare I can’t escape” and as places where “I am treated like a criminal . . . a threat” and where “I have no rights.” Young people’s social and emotional lives are ignored, just as Delia’s name is discounted. In its place, number forty-eight.

These inhospitable conditions and prolonged detention motivate many young people to secure the quickest route out—voluntary departure. Such “consent” is coercive at best.⁶ Because the U.S. Supreme Court declared deportation as a civil rather than criminal process, the state operates on the premise that unauthorized migrants “are not being punished; they are simply being regulated.”⁷ In this way, the juridical term “voluntary departure” accordingly sanitizes the violence inflicted by the full force of the state against an individual body⁸; it is jarringly discordant with the ways that youth like Delia describe their experiences of forced return.

In discussions of child migration in the United States and Guatemala, policymakers often utilize another euphemistic term—“family reunification”—for child deportations. The underlying claim, as anthropologist Shahram Khosravi argues, is that deportation “restore[s] displaced, out-of-place people to their ‘natural’ place of life, their ‘home-land.’”⁹ This is particularly pronounced for young people whereby family reunification promises to return children to their “natural” place within the family. Thus, in the state’s framing, repatriation is a form of “care.” These claims, however, belie the fact that U.S. immigration authorities in virtually all other contexts pay little to no regard to immigrant families, many of which include U.S. citizen children, by routinely and aggressively separating parents from their children. In the United States and Guatemala, Delia encountered discourses that oscillated between infantilizing youth to treating her and her family as a threat—unable to “decide if we were babies needing to be burped or someone who couldn’t be trusted.” In Guatemala, SBS officials met Delia’s parents with suspicion and disdain—“uneducated and selfish.” Cast as neglectful and ill-informed, their reunification garnered shame and threats, not a rightful return to family and homeland.

Reunification in the aftermath of deportation is indeed challenging, as there are very few ways young people and their families escape the deleterious effects of deportation.¹⁰ For Delia, deportation had stark material consequences for her and her family as they sank into financial ruin while navigating the shared burden of migratory debt. These pressures are felt intimately as families confront financial hardships, the loss of actual or potential remittances, limited employment opportunities, and for many Indigenous families, the loss of social standing for failing to repay debts. With no institutional services following deportation, the conditions that lead to migration are compounded by financial debt enlisted to migrate irregularly. For Delia, the anticipation of reunification—of staring at the stars, eating her favorite foods, visiting with friends and family—is tinged with hardship and uncertainty.

The international migration sector has long discussed return and reintegration of refugees. The development sector in the United States and Central America has embraced the phrase “reintegration” as a buzzword for child deportation. This is particularly problematic for Indigenous youth. Reintegration presumes prior membership and belonging. For youth who have resided in Mexico or the United States for the majority of their young lives, Guatemala is their country of

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origin but is not necessarily their country of membership, memory, or belonging.¹¹ Absent social support or family in Guatemala, connection to language, cultural knowledge, and the bureaucratic evidence of citizenship, young people like Liseth (chapter three) feel like foreigners in their country of birth. Indigenous youth who have resided outside of Guatemala, even for more abbreviated periods of time like Delia, articulate historical and contemporary exclusions of Indigenous communities that thwart “reintegration.” A perpetually unattended employment desk, an unavailable medical exam, transportation assistance that never materializes, a relic of a telephone hanging on the wall—all are emblematic of the social neglect that Indigenous youth encounter prior to migration and following return. There is no support to attend to the conditions spurring migration nor the realities that confront migrants in their communities of origin following return. Instead, young people, and by extension their parents, are held accountable for those conditions as well as the risks encountered en route. Such moralizing likewise suggests that young deportees have exclusive control over their lives before, during, and following failed migratory projects.

Eliana, a K’iche’ undergraduate student who coordinated some of my meetings following a community survey in Almolonga (chapter six), asked, “How are we supposed to belong to a state that, during the armed conflict, tortured and murdered my grandparents, that massacred my community, that disappeared my aunts and uncles, that sought to exterminate us from the land of our ancestors?” For Eliana, reintegration presumes integration in the first place. As illustrated by the director’s accusations that Delia’s parents resist modernity, Indigenous migrants are subjected to demeaning and racist treatment in government facilities. Scholars have long documented how Indigenous communities in postconflict Guatemala continue to be expelled systematically from all areas of social and political life, including the labor market, public education, health care, development initiatives, and political participation.¹² SBS’s development interventions are dimensions of broader discourses that individualize the reasons for migration and presume that familial disintegration is the reason for child migration in the first place.

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In 2014, I attended a conference in San Marcos on the influx of international aid focused on “social reintegration” initiatives for returning youth. The centerpiece of the conference was the launch of a USAID-funded initiative called ¡Quédate!

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THE HARM OF CHILD REMOVAL

SHANTA TRIVEDI *

EXCERPTED COURSE EDITION

* * *

| 525 I. INTRODUCTION

In a recent case in New York, a mother came under investigation when she took her then six-week-old son, Kaden, to the hospital with head injuries. New York City’s Administration for Children’s Services (“ACS”) became involved after a doctor at the hospital concluded that Kaden’s injuries were inconsistent with his mother’s explanation. Kaden was removed from his mother’s care, as was his nine-year-old sister Rihana. Since the children had different fathers, the siblings were also initially separated from each other. Rihana was placed in the care of her father—with whom she had previously only experienced weekend visitation.

Following the separation from her mother and brother, Rihana’s emotional state deteriorated. She started having problems in school and even threatened to harm herself if not returned to her home. Her

* Excerpted from Shanta Trivedi, *The Harm of Child Removal*, 43 New York University Review of Law & Social Change 523 (2019). This course edition omits the original footnotes and reprints only the assigned pages. The printed page numbers of the original appear in the text as | 523 at the point where each page begins; cite to those numbers — e.g., (Trivedi 2019, 523). A centered asterisk break (* * *) marks material omitted from the excerpt. Italic passages set off between rules are the instructor’s annotations, not the author’s words, and should not be cited as the article.

therapist observed that she had “regressed to where she had been two years prior.” Although she showed some improvement after being moved from her father’s home to her grandmother’s, Rihana, through her attorney, kept begging to come home to her mother. In an in camera interview, “Rihana expressed to the Court her desire to return home to her mother and that she is sad to be away from her.” For Rihana, the harm of removal was extremely high.

Recent uproar about the separation of immigrant children from their parents at our southern border has led to an outpouring of information from the medical community about the horrifying effects that family separation has on children. Doctors say family separation yields “catastrophic” results, with the trauma of being taken from one’s parents having long-term effects on children’s brains. Over 13,000 mental health professionals signed a petition which states that “[t]o pretend | 526 that separated children do not grow up with the shrapnel of this traumatic experience embedded in their minds is to disregard everything we know about child development, the brain, and trauma.” The American Association of Pediatrics noted that family separation “can cause irreparable harm, disrupting a child’s brain architecture and affecting his or her short- and long-term health. This type of prolonged exposure to serious stress—known as toxic stress—can carry lifelong consequences for children.”

This information, while disturbing, is not new. Study after study demonstrates that children also suffer complex and long-lasting harms when they are removed from their parents and placed into foster care. Yet, in most states, courts consider only whether a child is at risk of harm if she remains in her parents’ care, without factoring in the harm that results from the alternative—removing that child from her home and her family. Due to the child welfare system’s long history of erring on the side of removal, taking children from their parents is widely considered the better and safer course of action. There are certainly cases in which removal may be necessary. But in two jurisdictions, courts are required to consider the whole picture, including the harm of removal, before coming to that conclusion. Further, recent federal law demonstrates recognition of the dangers of taking children from their families and may signal a broader shift back towards prioritizing family preservation.

This article explores how the child welfare system’s stated goal of protecting children would be better served if all involved parties utilized information about the harm of removal when making decisions. This includes passing legislation; allocating funding; considering re-

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movals; and lawyers advocating for clients in an effort to keep their families together. This paper argues that consideration of the harm of removal would allow the child welfare system to better serve children by contemplating all potential harms prior to removal and balancing them to determine what is really in a particular child's best interest—removal or remaining at home.

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| 527 II. WHAT IS THE HARM OF REMOVAL?

The “harm of removal” is a blanket term used in the child welfare system for the multiple ways a child may be negatively impacted by separation from her family and placement into foster care. It conveys a recognition that “[r]emoval and placement in foster care may have a worse impact on the child than neglect.” Notably, while the term is phrased in the singular—“harm”—there is no single “harm” of removal, but rather numerous independent and overlapping “harms.” Hence, this Part discusses some, though certainly not all, of the harms that arise when a child is removed from the care of her parents due to proven or suspected abuse or neglect.

While the accepted wisdom is that removal is the better option for a child in a potentially abusive or neglectful home, research demonstrates that this is not always true. In fact, the bond between children and their parents is extremely strong and disrupting it can be even more damaging to a child—even when her parents are imperfect.

A. Emotional and Psychological Harms

The child welfare system frequently underestimates and undervalues the negative impact on a child who is removed from her family. Substantial evidence | 528 supports the notion that children suffer considerable trauma when they are separated from their parents. Indeed, studies show—and some courts have agreed—that the damage caused by removal from one's parent “may be ‘more damaging to the child than doing nothing at all.’” The problem is that the majority of courts in America are not required to consider that possibility when determining whether to remove a child from her parents.

1. SEPARATION AND ATTACHMENT DISORDERS

The concept that separating children from their families has adverse developmental and biological consequences is hardly new. As early as the 1940s, studies exposed negative effects on children separated from their parents. “Attachment theory” suggests that emotional distress and later problems such as aggression and depression can be attributed to early childhood disruption of the parent-child bonding process. One of the earliest studies in this area found that foster children placed in institutional settings showed high rates of “hostile aggressiveness,” “temper tantrums,” “enuresis [bedwetting],” “speech defects,” “attention demanding behavior,” “shyness and sensitiveness,” “difficulties about food,” “stubbornness and negativism,” “selfishness,” “finger sucking,” and “excessive crying.”

Due to their psychological attachments, children may long to return to their biological families after being placed with a foster family, even when their biological families previously mistreated them, and they may benefit from maintaining familial connections. Psychologists warn that “[p]rofessionals seem to ignore that for the child, the maltreating parents are the only parents he or she has, and that any separation, particularly if long and abrupt, will evoke strong and painful emotional reactions.”

In one study, a child participant stated that he did not like his foster parent simply because “it wasn’t my mama, my real mama.” Another child exclaimed, ⁵²⁹ “[F]oster care is just sick! . . . You get taken away from your parents. It ruins your life! Your heart is totally destroyed, and the only thing that is left working in your body is your brain. . . . That is why I want out of this foster care right now.” These statements evidence the heart-wrenching effects of separation.

Newborns are often removed by child protective agencies without regard for the fact that they suffer significant negative effects when taken from their parents, and especially when taken from their mothers. Studies show that newborns prefer the sound of their mothers’ voice over those of other females, which doctors see as evidence that the period after birth is critical for bonding. It is also now widely accepted that skin-to-skin contact between parents and their babies in the first hours of life has significant health benefits for the infant. Physical contact and proximity to their parents is therefore crucial for infants.

The newborn experience is extremely important in the context of the current nationwide opioid crisis. When a newborn tests positive for

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illegal drugs at birth, or even methadone used in the treatment of opioid addiction, the mother may be criminally prosecuted and the child welfare system almost always removes the baby soon after birth. Dr. Ron Abrahams, medical director of perinatal addictions at B.C. Women's Hospital in Vancouver, believes that the symptoms observed in such children after birth, and alleged to be signs of withdrawal justifying removal, are often confused with the stress of separation from the baby's mother. |⁵³⁰ Similarly, Dr. Joshua Sharfstein, a pediatrician and professor at the Johns Hopkins Bloomberg School of Public Health, argues that babies who are removed from their mothers based on the mother's drug use during pregnancy actually tend to fare worse, not better. He has cautioned against repeating the mistakes of what he calls the "crack baby panic," when children were removed from their mothers based on positive drug tests, yet suffered no long-term developmental issues related to their mothers' prenatal drug use. Dr. Matthew Grossman, assistant professor of pediatrics and hospitalist at Yale New Haven Hospital, found that babies who were allowed to spend more time with their mothers had shorter periods of withdrawal symptoms than those who were isolated and treated pharmacologically. Hospitals experimenting with "rooming in" programs, whereby babies are allowed to stay with their mothers instead of being placed in the neonatal intensive care unit, have consistently affirmed these findings. Yet the child welfare system remains ignorant to these lessons.

The ongoing immigrant family separation crisis highlights the experience of separation anxiety. Even after being reunited, children who had been forcibly separated from their parents at the border demonstrated anxiety when their parents left the room for brief periods, even to take a bath. One child refuses to go to school for fear of being torn from his mother again, and another will only sleep if she is safe in her mother's arms. Thus, evidence of separation anxiety and attachment disorders in the context of family separation at the border provides a |⁵³¹ window into the trauma that children in the child welfare system experience every day across America.

2. TRAUMA INHERENT IN THE ACT OF REMOVAL

On top of the harms of separation from family, the act of removal itself—particularly the jarring way in which it is accomplished in the American system—is inherently traumatic. Dr. Monique Mitchell, an interdisciplinary professor who focuses on grief and loss, chronicled the results of a unique study of foster children and the feelings of grief

and ambiguity that occurred when these children were separated from their families.

Most notably, Dr. Mitchell reports that the simple act of removal, without regard to what happens afterwards, has significant effects on children. She states that while generally an adult might think of removal as a “quick, isolated, one-time event,” for a child, it is a “significant turning point . . . that many children will relive over and over again in their minds.” This undoubtedly causes children immense trauma as they replay this horrible moment in their lives.

Being removed from one’s family and entered into foster care is extremely harrowing and, for most children, completely unexpected. Once the state receives a report of suspected abuse or neglect, a child may be roused from their sleep, taken from their bed in the middle of the night, put into a car with strangers, and dropped into a holding center overnight until their removal is approved by a court and a foster care placement is identified. All of this is done with minimal explanation to the child. Sometimes, if a placement is not available, children may even sleep in the offices of the state’s child protective services. When a placement is eventually identified, they are usually taken to a stranger’s home, a ⁵³² group home, a residential treatment facility, or, in the best case scenario, a relative’s home.

Dr. Mitchell notes that, for most children, questions related to foster care are left unanswered during their transition. In the study, children reported receiving unsatisfactory answers from caseworkers to questions about why they had to leave, where they were going, who they would be placed with, and when they could go home. As one twelve-year-old child put it, “It’s like you’re being kidnapped and nobody wants to tell you [anything].” And often, this is because the caseworkers themselves do not have the answers.

Children are therefore often upset not only because they are being removed, but also because of how they are removed. The caseworkers involved either do not provide them with adequate information, or provide them with incorrect information, leading to feelings of frustration and anxiety.

* * *

The omitted subsection (pp. 532–534) catalogs the griefs that follow removal. Children may mourn separated parents as if they had died. Siblings are routinely split up — in one New York survey, over ninety percent of foster youth had siblings, but only about a fifth lived with

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them — and children lose schools, friends, pets, and possessions. Trivedi also describes “ambiguous loss”: a child placed in a new family while still psychologically part of her own, unsure which family she belongs to. Hold onto that word, belongs — it carries this week’s whole question.

| 534 4. UNIQUE HARMS FOR MINORITY CHILDREN

Family courts are filled to the brim with indigent litigants of color. Anyone who has spent a day in family court has been struck by the overwhelming presence of Brown and Black faces, so it should come as no surprise that the majority of children in foster care are ethnic minorities. Scholars have labeled family court the “poor person’s court,” and the child welfare system an “apartheid institution.” A former New York child protective specialist-turned-scholar went further, likening the child welfare system to slavery and advocating for the use of Thirteenth Amendment arguments in child welfare cases. Others have compared the removal of African American children to the disproportionate removal of Native American children from their tribes prior to the passage of the Indian Child | 535 Welfare Act of 1978 (ICWA). Even after ICWA, Native American children are still removed at higher rates than their peers.

Those who have contact with the child welfare system have noted that caseworkers often have biases against parents based on class, race, and poverty, and that these biases may impact decisions about which children are removed. Caseworkers have sweeping discretion in determining which children to remove. Because a neglect case can be opened if the caseworker believes there is potential for harm, and in many cases a removal can occur prior to a final determination of that harm, there is a dire risk that caseworkers’ subjective views of “good parenting”—and, worse yet, their subconscious biases—will determine whether or not a child is removed. For example, a caseworker could file a case after learning that one parent came home intoxicated, despite the fact that the other parent was also at home and not under the influence of any substances because in her opinion, a parent should not be consuming large amounts of alcohol.

| 536 Researchers have found that racial bias exists at each stage of child welfare proceedings, from investigation to mitigation efforts to ultimate removal. Statistics confirm that minority families, and Black families in particular, are less likely to receive in-home services meant to address underlying causes and prevent removal. Thus, the state is

more likely to permit white children to remain with their families, and take Black children away from theirs when faced with similar allegations. For example, a 2002 study by the Minnesota Department of Human Services found that Black children are five times more likely to be removed than children of other races. Sixteen years later, in 2018, Black children in Minnesota were still three times as likely as white children to be involved in the state's child welfare system. As a result, in April of 2018, parents in Minnesota filed a Section 1983 lawsuit against the state alleging in part that child protective laws were being enforced in a discriminatory manner.

Poverty, of course, plays a significant role in exacerbating racial disparities. This is particularly true, because (1) as many outsiders are surprised to learn, the majority of cases in the child welfare system deal with neglect, not abuse; and (2) poverty is often conflated with neglect or creates circumstances that may lead to neglect. Indeed, research shows that “[i]nadequacy of income, more than any other factor, constitutes the reason that children are removed.” Child welfare | 537 experts Martin Guggenheim and Dorothy Roberts have separately noted that many children remain in foster care solely because their parents have inadequate housing. This is particularly true in urban areas where affordable housing is scarce. Finally, neglect cases may also be filed for failure to provide sufficient food or inadequate supervision due to lack of affordable childcare. These are problems of family poverty, not of parental mistreatment.

This is significant in the context of race because Black children are nearly three times more likely to live in poverty than their white counterparts. Black families also tend to have more contact with state actors, leaving them particularly vulnerable to additional state intervention. Low-income families are more likely to seek medical care from emergency rooms or public clinics, use public transportation, and live in public housing, leading to more frequent interaction with government systems and increased visibility to child protection agencies.

Additionally, if a family receives public benefits or “welfare,” it may sacrifice its privacy. The Supreme Court has held that a family must allow state social workers to enter the home without a warrant to assess the family's worthiness to receive public assistance, to change the amount it receives, or to determine if there are any social services that could be provided. In his dissent in that case, Justice Marshall noted that one of the arguments in favor of such visits was that they were necessary to protect children from “abuse” and “exploitation.” Marshall queried whether the majority would “sanction, in the absence of proba-

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ble cause, compulsory visits to all American homes for the purpose of discovering child abuse,” or whether the Court was holding “that a mother, merely because she is poor, is |⁵³⁸ substantially more likely to injure or exploit her children.” Marshall’s critique aside, decisions like this have left us with a society that “respect[s] the privacy and autonomy of middle-class families, but . . . accept[s] coercive intervention and intrusion in low-income families.”

Policing matters as well. It is no secret that police departments overpolice African American communities and “disproportionately subject African Americans to so-called ‘quality of life’ policing.” And just as many Americans “believe crime has a Black face,” a perception exists that the face of abuse and neglect is also dark, leading to disproportionate targeting of African American and other ethnic minority families in the child welfare system. Thus, due to bias and increased contact with state actors, parents of color are more likely to “catch a case” in the first place, and then also more likely to have their children removed. Further, once separated, these families are less likely to be reunified.

|⁵³⁹ The number of Hispanic children in foster care is also disproportionately higher than Hispanics’ representation in the general population. In 2016, Hispanics made up 17.6 percent of the national population, yet constituted twenty-one percent of the foster care population. This is likely due in part to the fact that Hispanic families are subject to anti-immigrant sentiments and “public perceptions that associate Latino immigrants with criminality, cultural deviance, and overarching illegality.”

A lack of understanding of cultural differences may lead to additional discrimination in legal systems. For example, one Hispanic parent who was facing termination proceedings due to her child’s alleged malnourishment was told that her child’s diet was “too heavy in dairy and lacking in vegetables and meat” because “his parents fed him milk, tortillas, sopas, eggs, and beans.” The caseworker failed to consider that this diet was influenced both by the parents’ culture and their available financial resources.

Indeed, this lack of concern for children who are considered “others” is evident at the highest levels of government. In discussing how the government would care for (primarily Hispanic) children separated from their parents at the border, White House Chief of Staff John F. Kelly infamously said these children would be “put into foster care or whatever.” Mr. Kelly clearly and disturbingly demonstrated that the government had given absolutely no thought to the trauma that would

inevitably be inflicted on these children. In other words, he had not considered the harms of removal.

Native American children are also overrepresented in the child welfare system, despite ICWA, which is meant to keep Native American families together. In 2007, in many states, the percentage of Native American children in foster care was well over twice the percentage of Native American children in the general ^{| 540} population. In South Dakota, it was over three times as high while in Idaho, Minnesota, and Nebraska it was over six times as high. Worse yet, the United States District Court of the Northern District of Texas recently found several of ICWA's provisions to be unconstitutional, such that the future of ICWA and the limited protections it currently extends to Native American children may now be in jeopardy.

Racial disparities also exist in the rates at which abuse or neglect accusations are ultimately substantiated by the investigating agency. Substantiation means that the agency investigating the allegation of abuse or neglect finds reason to believe that the parent has committed the acts alleged, a finding that may be influenced by individual or institutional bias. Native American families experience the highest rate of agency substantiation, followed by Black families, leading to court filings and the potential removal of these children.

The removal of minority children from their communities inflicts additional, distinct trauma on these children. Removal from one's family is harrowing enough, but these children are often removed not just from their family but also their entire community, affecting their sense of identity and "cultural belonging." For children belonging to minority ethnic groups, ethnicity forms a more important part of their identity than it does for children in ethnic majorities. As such, removal from their communities is more devastating to their development and sense of self. Children who want to maintain their culture and their familial customs may not be able to do so in foster families belonging to a different race, culture, or religion, leading to additional feelings of loss and sadness for these children.

^{| 541} A scene from the popular television series *This Is Us* highlights these feelings. In the show, a white family adopts a Black child (presumably through the foster care system) after he is abandoned at a fire station by his drug-addicted father. Throughout his life, the child carries a notebook everywhere he goes and keeps track of every Black person he ever meets. Even though he was adopted into a loving and kind family, he has anxiety about the fact that he is often the only Black person in a room and wonders if any of the Black men he meets could

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be his father. His feelings intensify when he goes on a college tour of Ta-Nehisi Coates' "Mecca," Howard University, a historically Black university, where he is elated to be surrounded by people who look like him.

Placing children with families who are ethnically different or speak a different language may make the children feel stigmatized, and thereby intensify feelings of isolation and anxiety. For example, a situation as innocuous as a white foster parent being unable to style a Black child's hair in the way to which she is accustomed or a Spanish-speaking child being placed in a neighborhood where no one speaks Spanish may cause these problems. In one study, children of color reported discomfort with the idea of being placed with white families. The effects of cultural alienation on children—as well as the effect of a sense of belonging—should not be discounted.

Additionally, the disproportionate and excessive removals of children in minority groups lead to problems not just for individual families, but also for the entire community. As Professor Dorothy Roberts has argued, "Family and community disintegration weakens [B]lack's collective ability to overcome institutionalized discrimination and work toward greater political and economic strength." Thus, continued targeted destruction of minority families leads to the devastation of the larger community, which, in turn, has long-term consequences for the children of those communities.

B. Harms of Foster Care

Though child removals are often premised on the assumption that foster care is "better" than staying at home, the new settings are no panacea. In fact, foster care may inflict additional pain (on top of the harms created by removal and separation themselves), thereby producing worse long-term outcomes than if the child had remained at home. This section discusses the harms that children incur while ⁵⁴² in the foster care system, including abuse; neglect; instability; and physical, mental, and sexual health problems.

1. ABUSE AND NEGLECT IN FOSTER CARE

In making removal decisions, courts rarely, if ever, consider the dangers inherent to the foster care system itself. The determination about whether to remove a child is usually made separate and apart from any information about where that child will go once removed. Of-

ten, the child protective agency itself does not even know where the child will go when the removal is ordered. This may lead to children being placed in processing centers or temporary foster homes while a permanent placement is identified. And even when a home is located, little thought is given to which home would be the best place for a child. Rather, once a home meets standardized licensing requirements, it is usually deemed fit for any foster child. There is no analysis of whether a specific home might be a good fit for a child or better equipped to deal with her particular issues.

Despite the entire system being built on assumptions to the contrary, there is substantial evidence that children are more likely to be abused in foster care than in the general population (with their parents and other caregivers). The media is rife with stories of children abused in foster care, and studies show that these are not simply sensationalized anomalies. One study in Baltimore found the substantiated rates of sexual abuse in foster homes to be more than four times that of the general population. A similar study in Indiana found “three times more |⁵⁴³ physical abuse and twice the rate of sexual abuse in foster homes than in the general population.” Indeed, foster children are particularly vulnerable to sexual abuse, perhaps due to the non-permanent and non-biological nature of the familial relationships (resulting in diminished incest taboos), and/or the cultural and class differences that may exist between the foster family and the children involved.

Abuse in foster care may be caused by multiple factors, including poor training of foster parents, the lack of particularized matching of foster children with families, insufficient visitation from caseworkers, and failure to follow up on suspicions of abuse or referrals of allegations of abuse and/or neglect.

In the Northwest Foster Care Alumni Study (“The Northwest Study”) discussed in greater detail below, around one-third of the participants reported maltreatment in their foster homes. And, of course, actual abuse rates might be higher than reported. For foster care providers, reporting is essentially admitting their own failures and may open them up to scrutiny and liability. For foster care recipients, reporting may be embarrassing or traumatic.

Foster parents may also neglect their foster children in less overt ways. In a survey of foster children, twenty-two percent reported that they were not getting enough food. Twenty-six percent revealed that they did not have appropriate seasonal clothing. Ironically, similar conditions could have provided the impetus for a child’s initial removal

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from their family, begging the question of whether many of these children could have been spared the trauma of removal by simply being provided with better resources in their own homes.

Even poor communication between foster parents and children may have more severe effects due to the new environment. One child reported that even though she wasn't technically being abused, she felt mentally and emotionally abused because every time she asked a question, she was met with sarcasm from ⁵⁴⁴ her foster parents. Other children reported being treated differently or feeling judged by their foster parents, making bonding difficult. This was particularly true when biological children also lived in the home.

Overall, the weight of social scientific evidence suggests that children who are removed from their homes based on allegations of abuse or neglect often face more abuse and neglect in foster care. This is anathema to a system whose stated goal is child safety.

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The longest omission (pp. 544–563) finishes the damage report, then turns to law. Foster placements are unstable — a child may cycle through many homes — and foster children suffer PTSD at nearly twice the rate of war veterans. Economist Joseph Doyle found that comparable children left at home fared better than children removed. Trivedi then traces the system's roots to the "orphan trains," which from 1854 shipped roughly 100,000 poor New York children west for a "fresh start," and to parens patriae — the state as parent. Federal law still pays states for adoptions, not reunifications. Removal is built into the system.

| ⁵⁶³ IV. HOW THE LAW CAN HELP CHILDREN

A. The Right to Family Integrity

Thus far, the article has described how (1) removal causes harm to children, and (2) how, for the most part, the law does not incorporate that harm into removal decisions. From this point forward, the article will discuss how the law—as made by lawyers, lawmakers, and judges—can fill this glaring gap.

First, we must recognize and emphasize that the law already contemplates a right to family integrity. The right to family integrity is an outgrowth of the fundamental constitutional liberty interest of parents to raise their children. More recently, the law has come to encompass the notion that families have a right to stay together.

While the right to family integrity was initially framed as belonging to the parents, Supreme Court jurisprudence suggests this right belongs to children, too. In *Santosky v. Kramer*, the earliest expansion of the right to family integrity, the Court noted that, until a finding of unfitness, parents and children share an interest in preventing termination of their relationship. In so doing, scholars argue that the Court demonstrated that this right was “reciprocal, running both from the child to the parent and the parent to the child . . . suggest[ing] that either party could invoke the right, not just the parent.” While the question of whether children possess this fundamental right is an open one and has never been squarely answered by the Supreme Court, at least four federal circuits and several lower courts have held that this right belongs to both parents and children.

⁵⁶⁴ Children, therefore, arguably have an independent right to remain a part of their family. And, at the very least, parents have a clear right to remain with their children until a finding of unfitness.

In analyzing these fundamental rights, scholars have outlined the following rationale for constitutional protection of the family unit:

First, history and tradition support the designation of this fundamental freedom. Second, the government relies on the family to socialize children as well as to instill moral and cultural values. Third, family autonomy facilitates pluralism and diversity which might not be preserved if the government controlled childrearing. Finally, protection of family relations is often important to the physical and emotional development of the child.

Scholars have also argued that recognition of the right to family integrity developed in response to the destruction of Black families during slavery, and that it was necessary because “the destruction of the family was seen as a powerful vehicle of subjugation and dehumanization that could be inflicted on minority groups.”

The rationales supporting these constitutional principles demonstrate a direct recognition of the harms inflicted on a child once separated from her parents. They acknowledge the fact that parents and children have a shared right to remain together as a family, and that separating families also destroys communities.

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The article does not end here. Its final third (pp. 565–580) answers “so what do we do?” New federal law now funds services that keep families together. Washington, D.C. requires judges to weigh the harm of removal before ordering it. New York courts must balance the risk of staying home against the harm of leaving — the test that sent Rihana home to her mother. Trivedi asks the system to weigh harms honestly. Whether that answers this week’s question — or still treats the child as something to be placed — is yours to argue.
